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**Towards effective
governance of justice data**

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Towards effective governance of justice data

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Abstract

Effective data governance can support countries in implementing a people-centred approach in their justice systems. It can help policymakers better understand the scope, nature and impact of justice problems, design and deliver people-centred justice services, and measure what works. This working paper explores the role of data in delivering people-centred justice, as well as the values, objectives and practices necessary for data governance to harness its full potential. This paper is based on desk research and in-depth interviews with national representatives and line ministries in selected countries and with private and third sectors. It builds on the OECD Recommendation on Access to Justice and People-Centred Justice Systems, the OECD Framework and Good Practice Principles for People-Centred Justice, the OECD Digital Government Policy Framework, and the OECD Data Governance Framework. It incorporates lessons from data governance activities and experiences in justice and other relevant sectors.

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1 The role of data in delivering people-centred justice

Context

Transitioning to a people-centred justice system requires re-designing processes and services around people and their needs. A people-centred purpose should strive to achieve equal access to justice services, information and outcomes for all. However, current attempts to deliver people-centred justice policies, processes and services are hampered by limited data on people's legal needs, issues they have brought to formal justice institutions (their "justice problems"), or their experience as they try to resolve them. Investing in the collection, use, maintenance and sharing of data is vital for the design of justice systems that meet people's needs on an equal basis.

The OECD Recommendation on Access to Justice and People-Centred Justice Systems and the OECD Framework and Good Practice Principles for People-Centred Justice (hereafter "PCJ Framework") recognise that collecting, using, sharing and maintaining data about people, their justice problems and experience with justice systems and services is crucial to the design of people-centred strategies and to monitor their efficacy (OECD, 2023^[1]) (OECD, 2021^[2]). Data on the wider social and economic impact of justice problems and on the benefits to people and society when these problems are resolved are also vital for building a case for ongoing investment in people-centred justice approaches.

The OECD discussion paper "Grasping the Justice Gap" (Chapman, Peter et al., 2021^[3]), co-produced with Pathfinders and the World Justice Project, proposed three data priorities to strengthen people-centred justice:

- **Data to understand the scope, nature and impact of justice problems.** Those in charge of designing and delivering justice systems need data to better understand who has justice needs, what those needs are, when and where they are experienced, their underlying causes, and their impacts and costs.
- **Data to design and deliver people-centred justice systems and services.** This encompasses data that can inform the design and delivery of policies and services to strengthen legal capability, prevent justice problems, and correct systemic bias and injustices.
- **Data to measure what works.** The justice sector falls behind other social sectors (including health and education) in evaluating what works to deliver better outcomes for people. Effective and appropriate evaluation of access to justice initiatives is key to adapting strategies, allocating resources and achieving justice for all.

The different types of data required to meet these priorities are likely to be held by a variety of actors both inside and outside of the justice system (see Table 1). Typically, these data are held in different formats, subject to different definitions, and collected, stored and maintained by a range of statutory and non-statutory services and agencies, across both the public and private sectors.

Table 1. Examples of priority datasets and respective actors

	Data to understand the scope, nature and impact of justice problems	Data to design and deliver people-centred justice systems and services	Data to measure what works
Data held by actors inside of the justice system	• Survey data (e.g. data from Legal Needs Surveys, data from court service satisfaction surveys). • Administrative data (i.e. data recorded by service providers in the course of delivering services to people). • Court records, including documents filed with courts. • Judgments and decisions made by courts, tribunals and ombuds.	• Survey data linked to administrative records. • Administrative data (i.e. data recorded by service providers in the course of delivering services to people). • Court records, including documents filed with courts. • Judgments and decisions made by courts, tribunals and ombuds. • Management, performance and operational data held by law firms, advice agencies and law enforcement agencies.	• Administrative data (i.e. data recorded by service providers in the course of delivering services to people, including case outcomes). • Court records, including documents filed with courts. • Judgments and decisions made by courts, tribunals and ombuds. • Management, performance and operational data held by law firms, advice agencies and law enforcement agencies.
Data held by actors outside of the justice system	• Aggregated data (e.g. internet search records, data from online advice forums, population level demographic information). • Individual-level information (health, education, financial or welfare information held by agencies, private sector data aggregators or in population data banks).	• Reference data (e.g. geographic information and company records). • Individual-level information (e.g. health, education, financial or welfare information held by agencies, private sector data aggregators or in population data banks). • Aggregated data (e.g. internet search records, data from online advice forums, population level demographic information).	• Individual-level information (e.g. health, education, financial or welfare information held by agencies, private sector data aggregators or in population data banks).

Source: Author's own elaboration.

Why do policymakers need new justice data governance frameworks to support a transition to people-centred justice?

Data governance is one of the top policy priorities that governments must consider when seeking to maximise the benefits of data access and sharing and address related risks and challenges (OECD, 2024^[4]). Effective data governance ensures that data are consistent and trustworthy, and that it is not misused.

Data governance refers to the set of policies, procedures and rules that govern the collection, storage, sharing, use and maintenance of data. It encompasses a variety of arrangements, including technical, policy, regulatory or institutional provisions, that affect data throughout their lifecycle (creation, collection, storage, use, protection, access, sharing and deletion) and across both policy domains and organisational and national borders.

The OECD Recommendation on Access to Justice and People-Centred Justice Systems and the PCJ Framework recognise that delivering people-centred justice requires a cultural shift in the way justice services and systems are designed and delivered. Pillar 2 of the PCJ Framework recognises the need for effective governance to steward and cement this (OECD, 2021^[2]). In this regard, a new justice data governance framework is required to:

1. Re-orientate existing data collection practices;
2. Identify and address constitutional concerns, including the rule of law, equity and privacy;
3. Manage the opportunities and issues created by digital transformation;
4. Support data sharing within and beyond the formal agencies of the justice system; and

5. Create mechanisms to ensure that justice data governance itself reflects the PCJ Framework.

Re-orientate data collection practices

It is important to expand the data collection practices of formal agencies of the justice system beyond recording the information that is solely relevant to the agencies. This calls for the recording of data that help justice actors to understand the pathways, experiences and needs of the people who seek to navigate the justice system. Digital transformation offers an opportunity to undertake this work, but new governance models are needed to co-ordinate and direct these efforts and ensure that relevant data are collected in the most appropriate format.

The PCJ Framework notes that justice systems in most countries have evolved over centuries, often not in a people-centred way (OECD, 2021^[2]). Similarly, a people-centred approach has rarely been adopted as a starting point for addressing justice problems. From a data perspective, this also means data have not been collected on justice problems that people face, the impact these problems have on them, people's decisions when resolving their justice problems, their experiences with justice services, or their ability to obtain a fair outcome. By losing sight of the need to gather these data, justice systems may fail to address the real needs and challenges faced by the people they serve.

International reviews of existing justice data governance practices have confirmed that policies, procedures and rules that govern the collection, storage, sharing, use and maintenance of justice data have evolved to reflect the current structures and priorities of justice systems. As a result, justice data governance is often complex and unsystematic. This leaves the benefits of justice data largely untapped, particularly its potential to better prioritise, protect and reflect the interests of the people who rely on justice systems for protection and fair treatment (Townend, J. and Wiener, C., 2021^[5]). Given the current state of data governance globally, achieving people-centred justice often requires re-thinking conventional data collection practices and redesigning the way data are collected, stored and shared by the agencies of the formal justice system.

Where data are collected, they are often held and stored in formats that are not easily accessible (e.g. in narrative format, PDF, or paper files), or recorded inconsistently across agencies. In addition, administrative data (e.g. data collected primarily for administrative purposes as part of organisations day-to-day operations) tend to be structured around the events that are most relevant to these agencies (e.g. cases and not individuals). This creates significant barriers to understanding the experience of the justice system from a people-centred perspective.

Identify and address constitutional/legal concerns that inhibit data collection, sharing and use

Even when data relevant to the design, delivery and evaluation of people-centred justice systems are collected and stored in accessible formats, there can be cultural, constitutional or legal barriers to using and sharing these data both among justice institutions and with the executive branch of government. Barriers to using and sharing data on user's experiences in the justice system often stem from concerns about judicial performance management (e.g. cases in; cases out; case type; judgment delivery; number of cases assigned by judge; disposition rates; appeal rates), and the threat this poses to judicial independence or the independence of the prosecutorial function. This can result in additional pressure on judges to conform to certain data trends and excessive judicial scrutiny, and may create an environment where judges feel continuously monitored.

Developing a new data governance framework that brings together stakeholders from the executive and judicial branches to identify, navigate and develop arrangements that resolve these concerns is vital to harness the benefits of data for people-centred justice. If designed with the appropriate safeguards, this should not pose any challenges to the independence of the judiciary.

Manage the opportunities and issues created by digital transformation

Justice systems were predominantly paper based until recently. The recent push to use digital technologies and data to transform organisations, services and processes has been a catalyst to improve people's experience of justice systems. Yet, the digital transformation also creates novel issues that require consideration.

Digital transformation creates opportunities to rethink the way in which information about the justice system is disseminated to court users, the media and the public. Yet, the opportunity presented by digital transformation to collect more data in a format that is capable of being both analysed readily and disseminated widely also entails ethical, legal and policy issues. The issues include how to respond to requests for bulk access to data. There is a need to balance the principle of open justice with the need to protect the privacy of justice and legal services' users, particularly people in vulnerable situations.

These issues have not yet risen to the forefront because of the cost and inconvenience involved in accessing justice system data. However, establishing a data-driven justice system may require re-thinking what and how information is collected and stored and the best approaches to ensuring data quality, availability and accessibility (see Box 1). Addressing issues of data quality and coverage becomes even more important in the context of artificial intelligence (AI) in justice systems. The example of AI underscores the need for guardrails in data governance frameworks to manage the potential risks associated with AI systems, ensuring the objectives and values for people-centred justice are preserved.

Box 1. Courts' case management systems and misuse of eviction data

In the US, landlords are increasingly screening tenants using online eviction records available through courts' case management systems. While access to certain justice data, including eviction cases, can help optimise processes (e.g. screening applications and profiling), failing to audit or curate information before making it openly available can disproportionately affect individuals from low-income groups, perpetuating inequality.

Some studies have revealed the potential of screening tools based on information in court records to unfairly exclude individuals from rental accommodation. This resulted from inaccuracies in the information contained in eviction records, including incorrect names, dates and depositions. Furthermore, the failure to accurately and routinely record case outcomes led individuals whose cases had not resulted in eviction being screened out of access to accommodation.

In 2021, research also indicated that legal aid lawyers in New York observed that the children of defendants were erroneously being named in eviction proceedings. A provision in the state's Housing Security and Tenant Protection Act of 2019 was being misinterpreted to mean that only people who were explicitly named in an eviction petition could be named on the eviction warrant. As a result, some attorneys and landlords believed that they must include minor occupants to have their warrant served. Once children's names were entered into computerised court records, they were vulnerable to scraping by data aggregators and brokers, who extract this information to compile tenant "blacklists" that can be used by landlords. Legal aid lawyers raised concerns that this practice was causing irreversible damage, undermining the ability of children erroneously named in court records to rent property in the future. The issue may take many years to be addressed since it requires changes to published information, data retention policy (e.g. deletion requests, right to be forgotten) and the re-use of data available (e.g. data published and re-used by a large number of data brokers and service providers).

Source: Gilman (2020^[6]), *Poverty Lawgorithms: A Poverty Lawyer's Guide to Fighting Automated Decision-Making Harms on Low-Income Communities*, Porton, A. Gromis, A. & Desmond, M. (2021^[7]), *Inaccuracies in Eviction Records: Implications for Renters and Researchers*,

Support data sharing within and beyond the formal justice system

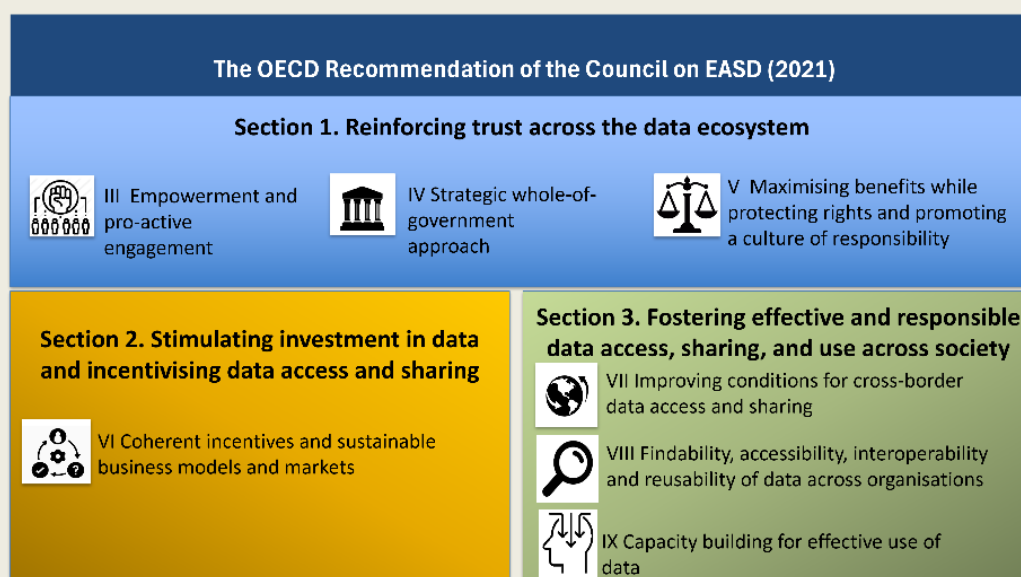
New models of governance are also needed to support data sharing among actors within, and agencies outside, the formal justice system. The PCJ Framework recognises that, in general, when attempting to resolve their justice issues, people rarely reach the stage of involving institutions of the formal justice system. Indeed, across countries, only 11% of respondents with justiciable problems have recourse to formal justice institutions, and only another 4% to other processes, including mediation and arbitration (OECD/Open Society Foundations, 2019^[8]).

Most people's justice journeys start and end before they ever reach a court or tribunal. Previous OECD assessments suggest that people's pathways of action for dispute resolution outside of courts often involve the police, lawyers, professional legal organisations, online advice services, legal aid offices, doctors, pharmacists, schoolteachers, family, friends, and acquaintances (OECD, 2024^[9]). As such, delivering people-centred justice requires policymakers and justice actors to have access to data that are collected, stored and managed by a diverse range of stakeholders outside the formal justice system (see Box 2).

Box 2. Recommendation on Enhancing Access to and Sharing of Data

The Recommendation on Enhancing Access to and Sharing of Data sets out general principles and policy guidance on how governments can maximise the benefits of enhancing data access and sharing arrangements while protecting individuals' and organisations' rights and taking into account other legitimate interests and objectives.

It is divided into three overall sections, covering a total of seven themes as follows:



Particularly on the engagement of the data ecosystem, Section 1 recommends empowering and proactively engaging all relevant stakeholders. This should occur alongside broader efforts to increase the trustworthiness of the data ecosystem; adopting a strategic, whole-of-government approach to data access and sharing; and maximising the benefits of data access and sharing, while protecting the rights of individuals and organisations and considering other legitimate interests.

The analysis in this report benefits from OECD work on data access, data sharing and privacy holistically without an exhaustive application of these instruments to the context of justice data.

Source: OECD (2021^[10]), *Recommendation on Enhancing Access to and Sharing of Data*

Delivering people-centred justice may require actors to share, link and re-use data that have been provided for another purpose. This encompasses, for example, combining data held by justice system agencies and service providers for the purposes of research (e.g. linking administrative records from health with data from justice systems and services). This helps to gather better information on who uses services and to identify opportunities to intervene earlier (see Box 3). Relevant data may be held by private actors, such as insurance companies, who may be unwilling to share data for commercial reasons. Concerns about client confidentiality, legal professional privilege and the independence of the legal profession may mitigate against law firms and legal advice agencies sharing data about the experience of their clients. Therefore, these approaches may test the “social license” for data use (see Box 3).

Box 3. Supporting data sharing in the justice sector

The “social license” for data use

The term “social license” or “social license to operate” has been in use since the 1990s. It was first developed in relation to extractive industries like forestry and mining. While there is no single agreed definition of the “social license”, it generally refers to continuous endorsement of an operation or initiative by both impacted local community stakeholders and the broader public.

The social license describes the expectations of society that go beyond compliance with existing law and regulation. A social license is not granted by governments or official bodies, but by the relevant community of stakeholders. If operations or initiatives proceed in the absence of a social license, they may be subject to ongoing challenge and contestation.

United Kingdom: Data First – linking administrative data across government to improve policymaking

Data First is an ambitious data-linking programme led by the British Ministry of Justice and funded by Administrative Data Research UK, an initiative of the British research councils. Data First collects administrative data from multiple courts within the justice system. It provides methods to link data about individuals across these justice datasets, but also with education and social data external to the justice system.

Data First does not rely on individual consent or legal compliance, but instead on adhering to the “social licence” for use of these data. Both the data and their analysis carry risks to individuals, to trust in the justice system, and to the “social licence” that allows the British Ministry of Justice to provide the programme and generate insights from data analysis.

To mitigate these risks, there are controls on who can use Data First and how it can be used. The data can only be accessed via the Secure Research Service overseen by the United Kingdom Office for National Statistics (ONS) and the SAIL Databank in Wales. These services operate to the “5 Safes” model that has become best practice in research uses of data: safe data, safe projects, safe people, safe settings and safe outputs. When applying these checks to people and projects related to Data First then the ONS and SAIL Databank processes consider the context of the British justice system and the Ministry of Justice’s Data First programme. These checks provide controls throughout the data and the research project lifecycle.

Because of Data First, approved researchers have identified opportunities to reduce repeat interactions with the justice system, addressed disproportionality in sentencing and intervened earlier to prevent justiciable problems from escalating.

Source: Carter, Dixon-Woods and Laurie (2015^[11]), *The social licence for research: Why care data ran into trouble*, Government of the United Kingdom (2020^[12]), *Ministry of Justice: Data First*,

Create mechanisms to ensure that justice data governance itself reflects the PCJ Framework

To date, existing justice data governance frameworks tend to privilege the views, experience and perspectives of justice system actors and professional users in decisions about data collection, sharing and use. A people-centred justice approach to data governance models is therefore essential to enable the justice system to meet people's legal and justice needs.

According to the PCJ Framework, people-centricity refers to a human-centred approach that adopts the perspective of people as a starting point. This involves placing people at the core when designing, delivering, monitoring and evaluating public policies, services and legal procedures within and beyond the justice system. It takes into account the perspectives and needs of specific communities, including marginalised and underserved groups, and groups in vulnerable situations (e.g. women, children, indigenous groups, the elderly and people with disabilities) (OECD, 2023^[1]). Taking the needs and voices of people into account entails, at a minimum, undertaking consultation and research to understand people, including their needs and interests (Lopez Solano et al., 2022^[13]) (OECD, 2021^[10]) (see Box 4).

Box 4. Understanding public concerns around the use of justice data

In 2022, the Legal Education Foundation commissioned a study exploring public attitudes to court record data sharing and use in the United Kingdom. The study combined nationally representative polling with public deliberation. Following similar research in other fields, the more informed people felt about who was using data and how they were using it, the more likely they were to be comfortable with its use and re-use. In relation to the specific purposes for which data might be used, there were marked differences in the levels of comfort expressed by respondents from different socio-economic groups.

Respondents were asked how comfortable they felt with information from court records being used to “help people on low incomes reach quick resolutions of their disputes without embarking on lengthy legal proceedings which may be unaffordable to them”. The study revealed that those on low incomes, who were the intended beneficiaries of this particular use of data, were the least comfortable with it.

Research also found strong public support for strict controls around the use and re-use of data contained in court records. A majority of participants in the public deliberation exercise expressed the view that the information contained in court records is as sensitive as the information held in medical records. There were particular concerns raised about witness names in employment tribunal cases being publicly available online. These concerns related to risks of putting off future witnesses from agreeing to participate in a case or increasing the risk of certain witnesses to retaliation, leading to their potential exclusion from future employment opportunities.

Source: IPSOS (2022^[14]), *Justice Data Matters: Building a public mandate for court data use*.

Good practices in the field of data-intensive health research (see Box 5 and Box 6) offer valuable guidance for structuring public involvement and engagement in justice data and for managing confidentiality concerns related to sensitive data. This is important to ensure that agencies and organisations do not breach the social license for data collection, sharing and use (see Box 3). Beyond creating infrastructure to support ongoing consultation and research, people-centred data governance could incorporate meaningful opportunities for a range of groups to participate in decision making around data practices.

Box 5. United Kingdom: The care.data initiative

In recent years, the concept of a “social license for data use” has been used to analyse public and stakeholder hesitation to particular projects or initiatives that involve data collection, sharing and use. One example was the public concern about the care.data initiative in the United Kingdom.

The care.data initiative aimed both to create a national database of health records spanning primary and secondary care and to make this database available on an anonymised basis for research and commercial use. Whilst the initiative was developed in accordance with existing legal frameworks, those in charge did not adequately explain the benefits of data sharing, examine the public’s views or address data breaches to satisfy the concerns of doctors who had a critical role in supporting the programme. Following public concerns, the programme was discontinued, utilising a substantial amount of public funds and posing challenges to public confidence in subsequent health data-sharing initiatives.

Research developed in the context of data-driven healthcare has helped researchers and policymakers better understand the principles and practices that data governance must adopt to support the creation and maintenance of a social license for data use. The COVID-19 pandemic created an imperative to use big data to understand transmission, prevalence and the clinical characteristics of patients. To secure a social license for data use in the context of the pandemic, researchers identified three principles. First, only data that are essential to achieve the specific objective should be used. Second, data governance should facilitate ongoing transparency, making sure that the public are kept informed about planned and ongoing data sharing and use. Third, data governance should exhibit a sustained commitment to public involvement. This entails two-way, ongoing communications with the public to explore attitudes towards data practices over time and reflect and address concerns as they are raised.

Source: Aitken M et al. (2019^[15]), *Consensus Statement on Public Involvement and Engagement with Data Intensive Health Research*, Shaw J. et al (2020^[16]), *Social license for the use of big data in the COVID-19 era*

Beyond investing in research, consultation and participatory decision-making models, data governance for people-centred justice must also create mechanisms to support people and communities to contest particular uses of data, hold actors accountable and secure redress (see Box 6).

Effective data governance for meaningful accountability must recognise that data collection and use affect collectives and the public, not just individuals. Accordingly, effective data governance supports institutional, as well as individual responses to data production and exploitation. Secondly, effective data governance enables the identification of problems and claims for redress at different stages of a data-driven intervention or application, not just at the initial approval stage. Thirdly, effective data governance can support the development of legal, structural and institutional mechanisms that empower people to dissent from, or not consent to, a given application or use of data (Lopez Solano et al., 2022^[13]). In this way, effective data governance serves to equalise the power differentials around data interventions.

Box 6. Good practices in public involvement and engagement in data intensive health research

In 2019 a group of international experts who specialise in public involvement and engagement (“PI&E”) in data intensive health research met to deliberate and agree a consensus statement for the future of the discipline. The experts identified eight key principles that should be adopted to establish a secure role for PI&E among the research community internationally and ensure good practices in its execution. They agreed that PI&E should:

- **Have institutional buy-in:** defined as an institutional commitment to promote PI&E and act on findings that emerge;
- **Have clarity of purpose:** the reasons for undertaking PI&E and the processes through which it will be acted upon should be made explicit;
- **Be transparent** about the data-intensive research under consideration as well as its own purpose and process. The public must be informed about what is happening to data about them, how decisions are made and the ways they can become involved;
- **Involve two-way communication:** the public should be active participants, contributors or partners in PI&E. Diversity and disagreement should be encouraged as positive features that are essential for constructive and uncensored dialogue;
- **Be inclusive and accessible to broad public:** facilitators should be supported to adapt their language and the format of events to ensure accessibility. Participants should be supported to engage freely and fully articulate their views;
- **Be ongoing:** PI&E should form part of an ongoing strategy, and should not be a one-off event. This allows adjustments to developments in the fast-paced field of data-intensive health research. It also helps to inform research and governance practices as they evolve;
- **Be designed to produce impact:** a success criterion of PI&E should require identifiable impacts or demonstrable change related to the overall purpose of the engagement;
- **Be evaluated:** evaluation should relate both to processes and outcomes and engage with different perspectives, including those of public participants.

Source: Aitken et al. (2019^[15]), *Consensus Statement on Public Involvement and Engagement with Data Intensive Health Research*

As in the justice sector, the health sector is another example where robust, context appropriate, privacy protective health data governance frameworks are needed to preserve public interests, trust and bring significant benefits to individuals and society. Recognising this, the OECD Recommendation on Health Data Governance is an important tool to guide countries in setting the framework conditions for enabling the availability and use of personal health data to unlock its potential. It also provides a roadmap towards more harmonised approaches to health data governance across countries (see Box 7).

Box 7. OECD Recommendation on Health Data Governance

Health data are necessary to improve the quality, safety and patient-centredness of healthcare services, to support scientific innovation, to promote the discovery and evaluation of new treatments, and to redesign and evaluate new models of health service delivery. The volume of personal health data in electronic form is growing with technological progress. Such data include electronic health and administrative records, behavioural and environmental monitoring devices, and genomic technologies.

When personal health data are linked and analysed, an exponential gain in information value can be attained to serve the health-related public interest and delivering people-centred services (e.g. improving diagnosis, particularly for rare diseases; identifying optimal responders to treatment and personalising care for better patient outcomes; detecting unsafe health care practices and treatments). Emerging technologies, such as Big Data analytics, can utilise enhanced computing power to process broad ranges of data in real time. When applied to health, Big Data analytics can improve patient care and further the discovery of disease markers and disease-specific solutions.

The OECD Recommendation on Health Data Governance aims to guide countries in setting the framework conditions for the availability and use of personal health data to unlock its potential. In so doing, it also provides a roadmap toward more harmonised approaches to health data governance across countries. The Recommendation proposes that countries establish and implement a national health data governance framework. This framework should aim to encourage the availability and use of personal health data to serve health-related public interest purposes, while promoting the protection of privacy, personal health data and data security. Twelve principles set the parameters to encourage greater cross-country harmonisation among the health data governance frameworks:

- Engagement and participation, notably through public consultation, of a wide range of stakeholders;
- Co-ordination within government and cooperation among organisations processing personal health data, whether in the public or private sectors;
- Review of the capacity of public sector health data systems used to process personal health data to serve and protect the public interest;
- Clear provision of information to individuals;
- Informed consent and appropriate alternatives;
- Review and approval of procedures, as appropriate, for the use of personal health data for research and other health-related public interest purposes;
- Transparency, through public information mechanisms that do not compromise health data privacy and security protections nor organisations' commercial or other legitimate interests;
- Maximising the potential and promoting the development of technology;
- Monitoring and evaluation mechanisms;
- Establishment of appropriate training and skills development in privacy and security measures for those processing personal health data;
- Implementation of controls and safeguards;
- Require organisations processing personal health data to demonstrate that they meet national expectations for health data governance.

The Recommendation also proposes that countries support trans-border cooperation in the processing of health data for purposes that serve the public interest. It recommends that countries engage with relevant actors to develop mechanisms that enable the efficient exchange and interoperability of health data. Finally, it encourages non-governmental organisations to follow the Recommendation when processing personal health data for health-related purposes that serve the public interest.

Source: OECD (2016^[17]), *Recommendation of the Council on Health Data Governance*.

2 Objectives and values of data governance for people-centred justice

Context

At a minimum, data governance must ensure that fundamental rights are upheld, and that existing laws and regulations are complied with. However, to be truly effective, data governance must also sustain the social license for data use (see Box 3). In this regard, justice data governance frameworks must enable clear articulation of the objectives that the collection, sharing and use of data aims to achieve, and the values that programmes and projects produce.

From the PCJ Framework, two major objectives for justice data governance can be defined. Effective justice data governance for people-centred justice should enable the collection, use, management and sharing of data to:

1. Understand people's needs and experiences with legal and justice services from their perspective; and
2. Develop and implement policies and services that meet those needs and remove barriers to access as part of a holistic vision for a people-centred justice ecosystem.

Projects and programmes relating to the collection, storage, sharing, use and maintenance of justice data should be assessed according to their potential to advance these objectives. The following discussion expands on these objectives and describes the kinds of projects that serve to advance them, with examples of initiatives and good practices.

Achieving the objectives in practice

Understanding people's needs and experiences with legal and justice services from their perspective

Understanding people's legal needs from their perspective, whether they recognise that these needs are legal or not, is critical to the design and delivery of services that address unmet needs.

Data on when, where and how problems are experienced, and by whom, are critical to the delivery of people-centred justice. Administrative data that are collected by legal systems and services (e.g. courts, ombuds, law firms, legal aid providers, community advice services) reveals only a fraction of the actual legal needs of the population. This type of data source only captures the characteristics and experiences of those people who manage to access existing services. Therefore, governments should also look to gather data on those who cannot or do not access justice services.

Governments should therefore consider investing in projects to collect data about the needs and experiences of people who do not reach the formal legal system, and who may not even realise that the problem they are experiencing could benefit from a legal solution. Investment to facilitate this type of data collection is key to designing policies and services that expand access to justice and address unmet needs.

The kinds of initiatives that may be developed to advance this objective vary in novelty and complexity. Legal Needs Surveys are a popular tool among policymakers to gather data on how people experience their legal needs (see Box 8). They provide an empirical basis for understanding how peoples' justice issues arise and are experienced, therefore contributing to a broad range of development priorities (OECD/Open Society Foundations, 2019^[8]). The OECD/Open Society Foundations report on Legal Needs Surveys and Access to Justice sets out a framework for the design, implementation and analysis of Legal Needs Surveys. It provides modular tools that can be applied in different types of surveys and examines the concepts, framing, scope and units of measurement used in Legal Needs Surveys.

Box 8. Colombia: Using Legal Needs Surveys to address unmet needs

Colombia has implemented one of the most comprehensive Legal Needs Survey to date. Building from legal and justice needs methodologies tested by the Colombian civil society organisation Dejusticia, a national survey was carried out in a collaboration between the Department of National Planning and the National Statistical Office in 2016. The survey data can be disaggregated by geographical area, gender and other identity characteristics.

Colombia developed an Effective Access to Justice Index (“Índice de Acceso Efectivo a la Justicia”) based on the survey results to inform their long-term justice plan. The country's index explores six dimensions of access to justice: i) a favourable environment (which is concerned with structural and institutional barriers to justice that lie outside the justice system); ii) legal capability; iii) legal assistance; iv) fair procedure; v) compliance with judicial decisions; vi) access to institutions. The legal and justice needs module of the Colombian National Quality of Life Survey contributes to 10 of 24 indicators. Availability of legal aid is a cross-cutting factor.

In addition to the Index, Colombia is using the survey data to close the gaps between supply and demand; identify the barriers to access to justice faced by vulnerable populations; develop a ten-year justice plan; plan and design appropriate, timely, integrated and targeted justice services, sustainability reforms and indicators for monitoring evolution.

Source: OECD (2021^[2]), *OECD Framework and Good Practice Principles for People-Centred Justice*

However, sample sizes from Legal Needs Surveys are rarely large enough to support small areas or local mapping of needs (OECD/Open Society Foundations, 2019^[8]). Accordingly, there is increasing interest in projects that apply insights from Legal Needs Surveys to official datasets and administrative datasets (such as the National Census data, social security data, and crime data) (OECD, 2021^[2]).

While many of the datasets relevant to understanding legal needs are collected and held by wider government agencies, private companies may also hold and collect some of the most useful data for delivering people-centred justice. These data are usually generated as a by-product of activities unrelated to law and justice (Lopez Solano et al., 2022^[13]).

For example, in one study, researchers used anonymised mobile phone data to predict the incidence of domestic violence at a neighbourhood level. In the context of the ongoing ubiquity of help seeking on social media platforms and websites, academics in the United States have developed machine learning tools to support the identification of unidentified and unmet legal needs from user generated content submitted to Reddit (see Box 9).

Projects that involve the re-use of data provided in a context unrelated to law and justice are more likely to test the social license for data use. This is particularly the case when data to identify and understand legal needs are re-used in a way that threatens the contextual integrity of the underlying data (see Box 9).

Box 9. Using AI models and datasets to help spot legal needs and match people to resources

Leveraging online forums and AI for accessible justice

Collection and analysis of data from online forums and user submitted natural language samples can be used to develop tools that help to reduce legal service providers' workload as well as the cost of legal services. The same technology can be used to provide targeted legal support (e.g. via chatbots) and link people to relevant sources of information and advice, helping to make justice systems and services more accessible.

The Stanford Legal Design Lab, in partnership with Suffolk Law School's Legal Innovation and Technology Lab, are taking thousands of posts from Reddit's Legal Advice board, labelling them with a standard issue code of legal needs, and using this dataset to develop machine learning models. The labelling is crowd-sourced through the Learned Hands project (Learned Hands). The machine learning models can automatically read through people's stories about their problems and suggest what legal issues are present.

The tool can be used by legal service providers to reduce the time spent on triage, or support access to relevant online legal information and resources. Having piloted the approach using the initial Reddit dataset, the team are now looking to more formal relationships with other data providers. Similar projects are being developed in Australia to support the work of legal charity Justice Connect, which help to link legal help seekers with relevant advice.

Source: Justice Connect (2024^[18]), *Our AI Project*

Accordingly, when designing, considering, assessing or deploying initiatives that involve the re-use of data, it is recommended that decision makers adopt a responsible approach to data re-use. This encompasses having a clear and well-defined purpose for data re-use, prioritising what benefits all people (see Box 10). As part of this responsible approach, practitioners should capture and communicate the origin, potential biases, limitations, and previous uses of datasets to ensure that those reusing the data are clear on what insights the data can and cannot provide. While recognising that risks can never be fully erased, practitioners should ensure an adequate level of data aggregation to guard against group privacy harms and re-identification of individuals (GovLab, 2020^[19]). Adopting a transparent communication strategy and engaging with local communities and actors, data stewards and trusted intermediaries can help ensure not only quality and accuracy, but also ethical and responsible use of data (see Box 10). A responsible approach to data re-use should also consider the duration of the data re-use efforts, including provisions for data retention, termination and modification (GovLab, 2020^[19]).

Box 10. The risks of failing to maintain the contextual integrity of data

The European Parliament conducted a study highlighting the importance of designing governance mechanisms capable of accounting for and regulating data fluidity. The study focused on the capacity of data to transition between different definitions of sensitivity depending on who uses it, for what purpose, and whether or not it is de-identified.

Data which may not be considered sensitive in one context, can become sensitive when it is shared, used or analysed to design, deliver or evaluate people-centred justice services and systems. To maintain the social license for data use, the study highlights the need for data governance frameworks to maintain the contextual integrity of data. This serves to prevent unrelated third-party use of data which people are likely to perceive as illegitimate.

To illustrate the risks, the study mentions the case of CrisisTextLine, a US non-profit organisation which offers counselling for people with mental health issues and suicidal thoughts. Crisis TextLine de-identified and aggregated data about its users before sharing it with a for-profit company. The for-profit company then used the data for training purposes for customer services software. This caused public backlash from people who felt that the data, albeit de-identified, was not appropriate as training material for a for-profit service. The purpose for which the data were being used (to generate profit) was felt to be incompatible with the context in which the data were provided, in spite of CrisisTextLine following the good practices in reducing the sensitivity of data.

Source: Lopez Solano et al. (2022^[13]), *Governing data and artificial intelligence for all*

Developing and implementing policies and services as part of a holistic people-centred justice ecosystem

Supporting the design of policies and services that meet people's needs is fundamental to deliver people-centred justice. Developing strong data governance frameworks that support the combination of data required to understand the legal needs of people with other data held by actors both in and outside the justice system is necessary to achieve this aim.

Analysing data about people's needs can help identify gaps in existing policies and services where interventions may be required. This information must be representative, covering diverse groups of people and their interaction with legal and justice services.

In addition to legal needs surveys, data held in court records, such as judgments and transcripts, can also be important sources. These data can support the development of a more detailed understanding of people's experience of the formal legal system, and the extent to which the system is meeting their needs. Given the widely recognised asymmetries in power and knowledge between people delivering justice services and those in receipt of them, data capable of supporting objective and expert assessments of the performance of justice processes is critical to ensure that services meet people's needs. This type of data can be gathered from court observations and court documents, including hearing transcripts and judgments.

For example, in 2022, the Ministry of Justice in the United Kingdom conducted research into the experience of victims of domestic violence in the family courts in England and Wales. The research combined data from a range of sources, including literature reviews, focus groups and an analysis of existing judgments and decisions. The final report identified serious and persistent issues with the way in which the courts treat victims of domestic violence in private family law cases (Government of the United Kingdom, 2023^[20]). The report led to the development of proposals for a data-driven oversight mechanism to monitor and improve the experience of victims of domestic abuse across the family courts. To this end, it calls to create

a network of expert court observers to monitor the treatment of allegations of domestic abuse by the judiciary.

Linking user satisfaction data to administrative data can enable stakeholders to understand whether particular groups of people are more or less satisfied with their experience using legal and justice services. As such, combining user satisfaction data and administrative data can produce valuable insights to design services that meet people's needs on an equal basis. Box 11 illustrates an example of using national surveys, a case management system, and administrative data to target interventions to improve the performance of Access to Justice Centres in Argentina.

Box 11. Argentina: Using data to compare the performance of access to justice centres

In 2016, the National Ministry of Justice and Human Rights in Argentina undertook efforts to develop and reform Argentina's existing programme of Access to Justice Centres, with the aim of delivering holistic, interdisciplinary primary justice services for disadvantaged communities. Ministers considered the national network of Access to Justice Centres a flagship programme between 2016 and 2019, leading to significant investment in the infrastructure to create a sustainable legal learning culture.

Between 2016 and 2019, two national surveys of legal needs were undertaken to understand the most significant justice gaps for the communities served by the Access to Justice Centres. In addition, investment was commissioned to a cloud-based case management system to record both the cases and institutional activities undertaken by staff at the centres. Staff were required to record information on the socio-demographic characteristics of clients, the substantive profiles of demand that had been met and the results of the service provided.

The resulting data helped monitor the extent to which the network of Access to Justice Centres meets people's needs. The data also supported national administrators to identify under-performing offices and set up performance improvement plans. In line with principles of transparency, objectivity and accountability, the data collected through both the case management system and the national studies of legal needs are available online to download by any interested party.

Source: Maurino (2020^[21]), *Putting People at the Centre: a case study on access to justice centres in Argentina*

Data can also support the effective development of user-centred and legal design strategies. User research, a key component of user-centred design and digital transformation activities, is a powerful technique that has supported the creation of many digital services. Despite its benefits, user research can also sample an inadequate number of cases or individuals, leading to services that do not address the needs of all users. Box 12 illustrates an example where the lack of a sufficiently representative sample of cases and users resulted in the development of digital services that underperformed for people in vulnerable situations.

Quantitative and representative data covering the full range of cases and people who use (or are intended to use) legal services and systems offer an outlook of legal needs across the whole population. It is therefore important to provide policy and service design teams with access to representative data. This can counterbalance the risk of sampling bias associated with in-depth qualitative research techniques often used in more granular design activities.

Box 12. United Kingdom: The importance of representative data in court reform in England and Wales

In 2016, the British government embarked on a £1bn programme of court reform that aimed to digitise existing justice systems and services. In designing reforms, His Majesty's Courts and Tribunals Service adopted a user-centred design approach.

Two of the first services to be reformed were the digital divorce and probate services which had very little available data about the characteristics of users or their cases. Prior to reform, the courts system relied on user research, working from small sample sizes instead of attempting to gather representative data prior to reform.

Following the launch of the new digital services, they were declared successful based on user satisfaction ratings. However, as this user satisfaction data were derived from a small sample of users, their actual impact was more nuanced. The process for ongoing performance monitoring did not collect demographic data to understand whether there were variations in effectiveness or data on case type and complexity. Likewise, in 2023, an investigation by the National Audit Office found that 55% of divorce cases could not be completed on the digital service. This required manual interventions, undermining the experience of users and threatening the business case for the reforms, which were predicated on an end-to-end digital service.

Source: House of Commons Public Accounts Committee (2023^[22]), *Progress on the courts and tribunals reform programme*

Designing services and policies that meet people's needs requires policy makers to invest in tools to capture users' subjective perceptions of the performance of services. In the context of court processes and other dispute resolution processes, it is essential to measure users' perceptions of the procedural justice of services and systems. Perceptions of procedural fairness are key to people's willingness to accept decisions, even when the outcome is not in their favour. In addition, perceptions of procedural justice have been found to be linked to public trust and confidence in legal authorities and institutions (Tyler, T., 2001^[23]).

Instruments have been produced to assess procedural justice from the perspective of users. Particularly in North America, they have been tested in a wide range of settings, including experimental and survey work (MacCoun, 2005^[24]). A number of court leaders in the US are currently using such instruments with the support of the Centre for Justice Innovation, a not-for-profit research organisation (Center for Justice Innovation, 2015^[25]). In British Columbia, the Civil Resolution Tribunal has introduced a user satisfaction survey with questions that map procedural justice to understand the extent to which the tribunal is meeting people's expectations (Government of Canada, 2023^[26]). While efforts to run satisfaction surveys have been conducted in jurisdictions in Canada and the US, it is worth mentioning that this remains an exceptional practice on the global scale.

Finally, teams designing policies and services also require access to data from outside the justice system to ensure that those policies and services meet people's needs. For example, the ability to link data about people's experience of the justice system and justice outcomes, to data in health or education records, can help governments to design better policies and devise new approaches to delivering justice services. The United Kingdom has linked data from the Ministry of Justice, the Department of Health and Social Care, and the Department of Levelling Up, Housing and Communities, to understand which services are most effective in preventing prison leavers from becoming homeless, and what role drug treatment services can play in preventing homelessness (Government of the United Kingdom, 2022^[27]).

Strong data governance within the justice system is required so that the people and organisations holding that data have sufficient trust to provide access. Efforts are required to create appropriate capacity,

regulation and data infrastructure to ensure that data are used for the purpose of delivering people-centred justice services and systems. These topics are covered in Chapter 3.

Upholding the values of the people-centred justice framework

In addition to ensuring that data initiatives contribute to achieving the objectives identified above (see Achieving the objectives in practice in Chapter 2), it is important that the values of the people-centred justice framework are promoted and guaranteed. The aims of projects that collect, share, use and maintain data, and the way these projects are conducted, should uphold and align with the values that underpin the people-centred justice framework.

Three values that are foundational to a people-centred justice culture include: (1) a commitment to equality; (2) judicial independence; and (3) maintaining and enhancing public trust in justice systems. The following sections provide an overview of these values and their implications for data governance in justice systems.

Equality

A key tenet of the OECD Recommendation on Access to Justice and People-Centred Justice Systems is promoting equal access to justice for all (OECD, 2023^[1]). The PCJ Framework recognises that justice systems exist in a context of unevenly patterned need and disadvantage. It advocates for the design of legal and justice services to actively overcome the barriers access to justice by providing the assistance that people need (OECD, 2021^[2]). In adopting this approach, the PCJ Framework advocates for justice systems to commit to a vision of equality that is substantive, rather than formal in nature.

A commitment to substantive equality has implications for both the types of data related to projects to be prioritised, and the conditions that are imposed on these projects as they develop. For example, when assessing whether to prioritise investment in a particular project, policy makers must consider who will benefit from the project, and whether the benefits of the project will be distributed to those who are most in need (see Box 13).

Box 13. Monitoring the impact of generative AI on justice outcomes

The increasing availability of generative AI tools (such as Chat GPT and Google Bard) creates new opportunities and challenges for access to justice. On one hand, it is argued that these tools can be used to increase access to justice for individuals without legal representation. For example, AI tools can help people to prepare and submit documents and, hence, to participate more effectively in legal proceedings. On the other hand, recent experiences in the United States, Canada and the United Kingdom have raised concerns about the accuracy and reliability of the outputs produced by generative AI tools when used for legal support purpose.

People who do not have access to legal representation are particularly at risk in this regard. In the absence of access to legal expertise and bespoke legal research tools, they have no means of independently verifying the accuracy and reliability of the information generated. Research led by academics at Stanford University has shown that, in spite of these issues, there remains a strong consumer appetite for using generative AI products that only increases once people have tried them. This research finds that the free, instantaneous, cleanly formatted and seemingly authoritative nature of the information provided is enough to command confidence – even at cost of information accuracy.

In this context, gathering data to both understand who is using generative AI, for what purposes, in what kinds of cases and to monitor the outcomes that parties secure when they do so, is necessary to understand the impact of generative AI on equal access to justice. This is particularly important to

support countries to develop proportionate, evidence-based regulatory responses to the growing popularity of these tools. One approach to collecting the data required is through amending practice directions that require parties to disclose to the court when they have used generative AI in the preparation of submissions and other court documents. Courts in Canada and the United States have introduced practice directions of this kind, which can form the basis of a data collection strategy. These measures can support policy makers and regulators to access information on the use of generative AI tools that can also be linked to case outcomes.

Source: The Guardian (2023^[28]), *Two US lawyers fined for submitting fake court citations from ChatGPT*, Hagan (2023^[29]), *Good AI legal help, bad AI legal help: establishing quality standards for response to people's legal problem stories*, Byrom (2023^[30]), *Unregulated AI legal advice puts the public at risk*, DLA Piper (2023^[31]), *Canadian courts respond to generative AI by issuing new practice directions on AI use in court submissions*, Bloomberg (2023^[32]), *AI standing orders proliferate as federal courts forge own paths*.

Against this backdrop, policy makers should consider whether the benefits of the data driven project – in terms of enhancing equal access to justice systems – outweigh any potential risks. Finally, policy makers must put in place mechanisms to guide and monitor the impact of data-driven projects, programmes and services on equal access to justice systems (see Box 13).

Judicial independence

Judicial independence is recognised under national and international laws as an essential feature of effective justice systems and critical to the maintenance of the rule of law. The PCJ Framework explicitly recognises judicial independence as foundational to the delivery of people-centred justice (OECD, 2021^[2]).

Judicial independence requires the judiciary to be free from any external pressures, including political influence or manipulation. An independent judiciary is one where judges are free to make impartial decisions solely on fact and law. As such, judicial independence is best understood not as an end in itself, but a means of ensuring that judges are free to decide cases impartially (Venice Commission, 2010^[33]; UNODC, 2020^[34]; OSCE, 2009^[35]).

In recent years, the growing recognition of the potential for detailed data about court processes, court actors and case outcomes to be collected and shared has prompted debate about the ways in which these data could undermine judicial independence. For example, data on court judgments could promote practices by the Executive branch to analyse judicial decision-making patterns in order to monitor or discipline judges who depart from the norm (CEPEJ, 2018^[36]). Likewise, the collection, aggregation and publication of information on judicial decision-making might result in the creation of “norms by majority trend”. Judges themselves may be reluctant to deviate from such norms, undermining vitality in judicial interpretation (ECHR, 2016^[37]). In addition, concerns have been raised about the impact of the increased data mining of justice on opportunities to game the system. One example includes forum shopping, where parties choose to withdraw, adjourn or transfer cases to a judge that they consider more likely to provide them with a favourable outcome (CEPEJ, 2018^[36]).

Recognition of the potential for data practices to undermine judicial independence is found in the European Union (EU) General Data Protection Regulation 2016 (GDPR), and in the EU AI Act. Under GDPR, courts and tribunals, when acting judicially, are excluded from the competence of supervisory bodies to preserve judicial independence (Custers et al., 2022^[38]). Data held by courts is excluded from Freedom of Information legislation in some common law jurisdictions (e.g. England and Wales).

At present, there remains little empirical evidence to prove or disprove the impact of collecting and publishing data about judicial decisions on judicial independence (Townend, J. and Wiener, C., 2021^[5]). The impact of changes to the way in which data are published and used on judicial independence may vary from country to country due to wider political and social factors. As such, when considering whether to prioritise and pursue data projects and programmes, decision makers should identify any risks in relation to judicial independence and take steps to mitigate them. Decision makers may also want to consider

implementing mechanisms to monitor the impact of changes to data collection, sharing and use of judicial data on judicial independence.

Public trust

The imperative to rebuild trust between institutions and the people they serve is identified as a key driver of the transition to people-centred justice (OECD, 2021^[2]). However, where not well designed nor implemented, projects and programmes that seek to collect, share, maintain and use data can undermine public trust in both data driven initiatives and the institutions who deliver them (Grimmelikhuijsen, 2015^[39]).

There is a growing body of good practices which aims to support policy makers to design, develop and implement data collection, sharing and use in a way that commands public trust (OECD, 2021^[10]). A number of good practice steps can be identified from research in data-driven health. To build and maintain public trust, policy makers could consider ensuring that any project or programme focuses solely on collecting, using and sharing data that are necessary to achieve its objectives. This emphasises the importance of minimalism in data handling practices.

Another key step is to evaluate any proposed initiative against insights gleaned from comprehensive research involving stakeholders and the public. This process helps to comprehend and pinpoint potential risks concerning public trust, guiding decisions towards more informed and transparent practices. For example, the LEF-funded research on public attitudes towards court data re-use in the United Kingdom (see Box 3) identified specific concerns about the availability of witness names in employment tribunals. Therefore, initiatives proposing to make these data more widely available carry additional risks to public trust and require further scrutiny.

Creating a clear, straightforward explanation of the project's goals, the data to be utilised, the project leaders and foreseeable risks becomes integral. Clear communication acts as a foundation for engaging with stakeholders and the public, promoting transparency and comprehension (see Support data sharing between and beyond the formal justice systems in Chapter 1).

Before initiating any data sharing activities, it is necessary to publicly announce the project. To promote openness and allow public input from the outset, publicly announcing the project should include details on how and where stakeholders and the public can express dissent. It is equally important to enable these dissent mechanisms throughout the project's duration. Providing avenues for dissent allows continuous public engagement and ensures their voices are heard. Lastly, establishing a monitoring framework to gauge shifts in public attitudes over time serves as an ongoing evaluation tool. This continuous assessment helps in adapting strategies to maintain and bolster public trust throughout the project lifecycle.

Applying the objectives and values in practice

Effective data governance frameworks regulate for participation by different actors in decision making about data. They allow for negotiations between competing stakeholders and interests and provide ways in which conflicts can be mediated and resolved.

Table 2 shows how the framework of objectives and values described in this chapter can be used to guide discussions and decision making. The answers to the questions should be recorded in the documentation of the decision and made publicly available, alongside information about how to engage with or dissent from the project, and routes for redress.

Table 2. Guide for policy makers on data governance for people-centred justice

Questions for discussion and documentation		
Objectives		• Does the project or programme advance one or more of the objectives identified in this paper?
Values	<i>Equality</i>	• Who will benefit from the project?

Questions for discussion and documentation		
		• Will the benefits to the project be distributed to those who need them most? • Do the benefits outweigh any risks? • Is there an effective monitoring framework in place?
	<i>Judicial Independence</i>	• Are there any risks to judicial independence? • Can these risks be mitigated? If so, how? • Is there an effective monitoring framework in place?
	<i>Public trust</i>	Pre-announcement • Does the project or programme use the minimum data necessary to achieve its objective? • Does the project or programme proposed engage any known risks in relation to public trust? • Can these risks be mitigated? If so, how? • Is there an effective monitoring framework in place to capture benefits and manage risk? Post-announcement, pre-commencement • Have concerns been raised through public and stakeholder engagement with the proposal? • Can these concerns be mitigated? • Are the public and stakeholders content with the mitigation? Ongoing • Has anyone dissented to the project? • Has the monitoring framework identified any risk or harm? Have these risks or harms been addressed?

Source: Author's own elaboration.

The OECD Framework on Data Governance in the Public Sector is a helpful policy tool to guide policy makers when implementing the objectives and values covered in this chapter. The application of this Framework can be particularly useful when the uniqueness of the justice sector is taken on board (see Applying the OECD model for data governance to the justice sector in Chapter 3).

3 Applying the OECD model for data governance to the justice sector

The OECD model for Data Governance

Approaches to public sector data governance may vary in focus. Some may emphasise technical governance aspects, while others underline specific data governance elements that are available but dispersed. To address these different needs, the OECD proposes a holistic model for data governance in the public sector. It is intended to bring greater clarity and structure to the definition and implementation of data governance across countries.

The OECD model is based on extensive OECD work on digital government and data. It has been used to analyse progress across a range of countries, including the series of the OECD Digital Government Review. The OECD model for data governance explores key features of governance needed to support the delivery of a data-driven public sector. It includes six dimensions, which can be divided into three layers: strategic, tactical and delivery (OECD, 2019^[40]) (see Figure 1). These three layers are mutually reinforcing to attain a sound data governance ecosystem (van Ooijen, Ubaldi and Welby, 2019^[41]).

Figure 1. The OECD model for Data Governance in the Public Sector



Source: OECD (2019^[40]), *The Path to Becoming Data-Driven Public Sector*, <https://doi.org/10.1787/059814a7-en>.

Strategic layer

Leadership and vision

Strong leadership that embraces a clear vision of data-driven justice is an essential feature of all successful data governance frameworks. The OECD has identified that strong leadership is crucial to ensure strategic direction and purpose, and to create clear accountability both for progress and for fidelity to goals of data governance (OECD, 2019^[40]). These goals align with the aims and principles outlined in Objectives and values of data governance for people-centred justice in Chapter 2.

To this end, it is essential for leadership to develop a common vision for justice across society; the systemic indicators to support decision making in line with this vision; and the data required for justice services to be designed and delivered in line with the system's goals. This provides a foundation to guide subsequent data governance decisions and implementation. Likewise, leadership requires coordinating actors across the public and private sector at a national or sectoral level.

Strong leadership is particularly important in the specific context of justice data governance. Justice data are held across a complicated network of public and private actors, each with their own incentives, systems, culture, policies and practices. Arrangements for collecting, storing, sharing and publishing justice data in many jurisdictions tend to evolve over time to support the delivery of particular functions or business models. As such, arrangements for collecting, storing, linking, sharing and using justice data are complex, inconsistent and fragmented in many jurisdictions.

Understanding people's justice pathways is key to harnessing justice data. This requires an understanding of the ways in which people interact with, and move between, organisational and institutional boundaries, and across justice services and systems. This requires aligning data policies and practices across actors and negotiating constitutional sensitivities.

While these challenges are particularly acute in the justice space, they are far from unique. Data governance frameworks to harness data to improve health outcomes, for example, face similar challenges. The experience of implementing data governance for health is instructive in identifying the types of leadership that is needed to support data use in the justice space. These include defined political and judicial leadership, responsibility and accountability specified in legislation and clear data strategies.

Political and judicial leadership

Identifying the specific actors who should hold responsibility for, and demonstrate leadership over, justice data can be complex. This is often due to the constitutional and legal issues that are potentially implicated in the sharing and linking of data across the different branches of government. In practice, joint leadership between the judiciary and executive, as part of a shared strategic approach for the role of justice data, is preferable to leadership that is vested in any one branch of government. Moreover, such a hybrid approach is more likely to lead to better outcomes and more sustainable change (see Box 14).

Box 14. Joint political and judicial leadership in the implementation of justice data initiatives

France: An example of support from senior judiciary to open data dissemination of court decisions

France enacted legislation in 2016 imposing a compulsory framework for the dissemination of open data on court decisions. This framework was embedded in Articles 20 and 21 of the Law for a Digital Republic. It provides for a general dissemination of all judicial and administrative decisions, with an exception where the decision requires analysis prior to publication to ensure there is no risk of re-identification of the persons involved. The Court of Cassation embraced this new vision, part of the government's strategic plan and directions set in the Law for a Digital Republic. A series of conferences

were organised between October 2016 and February 2018 and press release published in the Court of Cassation's website.

United Kingdom: Plans for the future of civil and family courts and tribunals in the digital age

In England and Wales, decisions to link case management data to better identify issues and deliver better outcomes for children across the family justice system were taken jointly by the Ministry of Justice and the President of the Family Division. This followed an independent review of family justice initiated by the executive and judicial proposals for family justice modernisation.

In addition, in November 2023, the Lord Chancellor and Senior Judiciary jointly launched their plans for the future of civil and family courts and tribunals in the digital age. These proposals centre on using digital technology, data and AI to join up routes to accessing justice. They also aim to create Application Programming Interfaces to share data between legal services, private dispute resolution providers and the courts. These developments will be overseen by a new body, the Online Procedure Rules Committee, which is intended to provide governance and deliver data standards for the newly joined-up system.

Source: CEPEJ (2018^[36]), *European Ethical Charter on the use of artificial intelligence (AI) in judicial systems and their environment*, Cour de Cassation (2024^[42]), *Cour de Cassation: recherche*, Norgrove (2011^[43]), *Family Justice Review: Final report*, Ryder (2014^[44]), *The Family Justice Modernisation Programme: Final Report*, Government of the United Kingdom (2023^[45]), *Vision for the future of civil and family courts and tribunals*,

Data strategies

Data strategies are an important element of good data governance. They can enable accountability within the systems being governed and help define leadership, roles, expectations and goals (OECD, 2019^[40]).

There are many examples of data strategies for elements of the justice sector, with several provided as case studies within this paper. These are typically for state-delivered elements of the justice sector. However, at present, there remains a lack of good practices that comprehensively encompass a people-centred justice system. This would include people-centred policies and services, public and private actors, data to understand the scope and impact of justice problems, and data holders that are inside and outside of the justice system. Previous data strategies, and the lessons learnt from delivering them, provide helpful resources in creating new people-centred justice data strategies.

There are a large range of stakeholders involved in delivering people-centred justice. As people-centred justice data strategies are developed, political and judicial leaders will need to be clear on the value of data governance and the objectives that it must adhere to. At the same time, leadership must be aware that the strategy is setting a new direction for data governance across this landscape and that justice stakeholders need to both align with the strategy and help realise it in practice. As such, developing new data strategies requires strong, carefully designed and meaningful stakeholder engagement and consultation. This approach should enable inputs from a wide-ranging group of stakeholders and consider their perspectives throughout the development process.

Legislation

Enshrining the objectives and values of justice data governance in legislation can be an effective mechanism for ensuring accountability and sustainability in data governance. For example, in the United Kingdom, provisions to facilitate the sharing of patient data are set out in primary legislation. This legal framework enables the Secretary of State for Health to make regulations to support the sharing of data “in the interests of improving patient care or in the public interest” (NHS, 2016^[46]). This type of legislation can have positive knock-on effects on the governance of justice and non-justice data, which is stewarded by public, private or third sector organisations. Countries will need to ensure that there are appropriate

legislative and regulatory safeguards against misuse of the data or the misuse of the powers over that data (e.g. by current political leadership or by individual organisations). This requires effective democratic scrutiny and appeal mechanisms.

Placing the rationale for data sharing in legislation helps to ensure ongoing alignment with the objectives and values of data governance. Similarly, demarcating the person(s) responsible for leading data governance in statute creates clear lines of accountability. This clarity and certainty can help support actors across the private and public sectors to more effectively engage in data collection, sharing and re-use (see Box 15).

Box 15. United Kingdom: The Online Procedure Rules Committee

In England and Wales, the Judicial Review and Courts Act 2022 contained provisions to create a new Online Procedure Rules Committee. This Committee is intended to provide governance and develop data standards for the digital justice system of the future.

The Online Procedure Rules Committee was created as an advisory non-departmental public body, sponsored by the Ministry of Justice and formally launched in November 2023. The Committee's initial membership includes the judicial heads of the civil, family and tribunal jurisdictions alongside lay experts in law and technology. Over time, the Committee's membership will be expanded through the creation of sub-groups. These sub-groups will focus on defining the data standards, governance and technical mechanisms needed to support the creation of seamless connections between the courts and tribunals and private service providers (including dispute resolution and legal advice services). On this basis, legislation was introduced to establish a new body with the power to create procedural rules applying equally across the civil and family courts and tribunals.

Source: Government of the United Kingdom (2022^[47]), *Judicial Review and Courts Act 2022*, Government of the United Kingdom (2023^[48]), *Vision for the future of civil and family courts and tribunals*,

Tactical layer

Capacity for coherent implementation

Successful policy implementation relies on the intersection of different factors. These can range from the establishment of inter-institutional coordination bodies grounded in adequate institutional networks, to capacity-building initiatives, collaboration and knowledge sharing (OECD, 2019^[40]).

The following sections highlight the role that inter-institutional coordination bodies can play in supporting actors across the justice system to collect, use, share and maintain justice data. It examines how this can contribute to the delivery of people-centred justice systems and services that are accessible, effective, equitable, and transparent. It also highlights good practices and examples of existing coordination bodies (OECD, 2019^[40]).

Inter-institutional coordination bodies

Inter-institutional bodies are often responsible for advising on budget priorities for data management and use. They may also be charged with ensuring that data strategies and projects take a risk management approach, in order to anticipate and respond to policy challenges as they emerge.

For example, in the United States, the National Centre for State Courts provides support to judges, court leaders and court administrators on emerging data and technologies. This support includes the provision

of information and consultancy on a range of topics, including data and technology procurement (NCSC, 2024^[49]). Similarly, the United Kingdom employs a number of inter-institutional coordination mechanisms for the justice sector in the area of data (see Box 16).

Box 16. United Kingdom: Inter-institutional coordination mechanisms for justice data in England and Wales

The Senior Data Governance Panel

The shadow Senior Data Governance Panel was created in England and Wales to advise the Lord Chancellor and Lord Chief Justice on novel or contentious issues arising from applications to access, share, link or use data from the courts and tribunals. The Panel aims to support effective decision making about access to, and use of, court data. In doing so, it prepares advice on the potential for issues relating to data collection, sharing, linkage and use to advance or undermine “the public interest in the proper administration of justice”.

The Panel is composed to reflect the constitutional arrangements in England and Wales. As such, it is co-chaired by a senior judge and a senior official from the Ministry of Justice. The Secretariat is provided by the courts and tribunals service (itself an independent agency of the Ministry of Justice that is jointly accountable to the Lord Chief Justice and Lord Chancellor). The Panel was formalised in 2023 and its membership includes judges, academics and members of civil society. The Panel’s terms of reference are not currently in the public domain.

The LawtechUK Panel

The LawtechUK Panel is another example of a coordination body to support the use of justice data in the United Kingdom. The LawtechUK Panel consists of a unique group of leaders and experts from public and private sectors. This collaboration of stakeholders aims to accelerate the digital transformation of the legal sector for the benefit of society and the economy. The Panel also promotes the United Kingdom’s continued commitment to improve legal and court services.

The LawtechUK Panel was established in 2018 by the Secretary of State for Justice and acts as the advisory board to LawtechUK, a government funded initiative that aims to transform the British legal sector through technology. Its outputs include reports combining sector data, trends and analysis, as well as insights and opinions from sector leaders and experts. In recent years, LawtechUK’s reports have highlighted the ways in which issues relating to the collection of and access to justice data are undermining attempts to grow the Lawtech sector in the United Kingdom.

Source: HMCTS (2022^[50]), *Making the most of HMCTS data*, LawtechUK (2021^[51]), *Shaping the future of law*,

Building institutional and organisational capacity

In addition to political and judicial leadership, investment in administrative leadership and capacity is important to deliver effective governance for justice data. The OECD report “The Path to Becoming a Data-Driven Public Sector” explores effective approaches to driving digital transformation across the public sector, highlighting that the importance of these roles goes beyond mere technical aspects (OECD, 2019^[40]).

In other areas of social policy, investing in institutional and organisational capacity to collect, store, use and share data is crucial for harnessing the benefits of data to improve broader outcomes across society. In addition to capacity building in terms skills and research, organisations are creating new roles and responsibilities and appointing ambassadors for data use in the justice sector. This helps to drive forward progress on harnessing data to deliver strategic priorities (ADR UK, 2023^[52]).

In England and Wales, His Majesty's Courts and Tribunals Service has created a new role entitled "Head of Data Access". This position supports the delivery of goals set out by their organisational data strategy. Likewise, in the United States, the Utah Judicial Council (i.e. the administrative arm of the state courts) announced the creation of a new "Office for Fairness and Accountability". The Office is dedicated to tackling racism and bias. As such, the Office Director is mandated to "work with lawmakers and the executive branch to gather data, reach out to marginalised groups, and train and recruit court employees". Additionally, in the United States, the Legal Services Corporation is investing in a fellowship scheme to provide not-for-profit recipients of its funding with the capacity and skills to collect, use and share data to improve organisational effectiveness and increase access to justice (Knox, 2020^[53]).

Data stewardship

Data stewardship is the act of using, collecting and managing data within an organisation. Each organisation within the people-centred justice system is making data stewardship decisions within the context of the broader data governance framework and their own organisational objectives.

A large range of data stewardship models are currently being used at either a national, sectoral, or organisational level. These models are often referred to as data intermediaries, data governance or data institutions. They can co-exist within a justice system, or as a specific data value chain within a justice system.

However, these existing approaches to data stewardship have limitations. Existing regulation to protect people from harm caused by data-related activities is often insufficient, and could better harness the benefits of data-related activities. There is also limited consensus on how to best balance the trade-offs between drawbacks (i.e. insufficient protection against harm versus the inadequate support for the creation of benefits), how to transition to new models, and the role of new regulatory frameworks versus self-regulated operational practices.

A range of practical and academic actors are exploring how to improve existing models, and how to create new types of stewardship models (e.g. data cooperatives and trusts). This forms part of broader efforts to understand the contexts in which these models are useful, and to make recommendations on which regulatory and institutional frameworks would help scale-up existing models. As each model has different purposes, values and primary beneficiaries, they can have differing modes of accountability. For example, a data trust provides some forms of accountability through fiduciary duties and regulations.

A study commissioned by the European Parliament identifies the dominant conceptual bases that underpin most existing data stewardship models. The study argues that most existing frameworks conceive of data as a strategic national asset or as a proprietary asset (i.e. belonging to those who use and manage it) with limited restrictions for personal data (Lopez Solano et al., 2022^[13]). It highlights the emergence of six different data stewardship models that represent alternatives to this dominant approach (see Box 17).

Box 17. Alternatives to dominant data stewardship models

A study commissioned by the European Parliament explores emerging data stewardship models as alternatives to the dominant model. These models are mainly pilots that are still under development. The study defines the basic characteristics of the newer models and discusses alternative perspectives on data stewardship. The alternative models fall within six different categories, including:

- **Public data trusts:** This model involves a public institution being charged with collecting, aggregating and managing data from different sources. This public body is also required to promote the use of data for the public benefit (e.g. data driven design and delivery of innovative policies and services), rather than for private or for-profit purposes. Accordingly, public data trusts emphasise the need for consultation with stakeholders to define what types of data use are considered for the public benefit. Engaging with stakeholders on data use also supports the

development and implementation of strong accountability measures to ensure alignment with the public interest.

- **Data collaboratives:** This is a form of public-private partnership, where private data collected by companies is pooled with public data through an independent third party. The independent third party governs data access and sharing, with data usage restricted to members of the partnership. Data collaboratives tend to prioritise data use projects that benefit the development of public policy. They also aim to empower members to access data that had been previously inaccessible.
- **Data (semi) commons:** This model envisages a system where data are conceived as a common or pooled resource (e.g. data on land or fisheries). As such, data are made available through shared infrastructure. The goal of data commons is to preserve data as a public good and render it available to the community. While data commons primarily exist as an ideal, research has found that certain features of the EU's data governance architecture are being constructed in line with a common-pool-resource philosophy. This is particularly the case for proposed legislative instruments that channel data between businesses and government, and from both business and government to the public.
- **Data cooperatives:** Data cooperatives refer to a model in which the data subjects are the main actors. This differs from many existing models where data owners (e.g. companies) exercise control over data subjects. Instead, data use, sharing and access is regulated collectively by particular individuals or groups. Community members voluntarily provide data to the pool and define the values, norms and procedures that govern access.
- **Indigenous data sovereignty:** The idea underpinning this model is that data are an infrastructure that should be managed according to the norms and values of data subjects. The model envisages that data and digital technologies are fundamental assets for which states should not be reliant on foreign powers. The Indigenous data sovereignty movement responds to the historical context where data from Indigenous communities has been used by colonial powers to control the lives of Indigenous people. It promotes the idea that data about Indigenous peoples, territories, lifeways and natural resources should be managed according to their laws and values.
- **Personal data sovereignty:** A model in which data subjects are defined as market agents that aim to control the access, use and sharing of their data to maximise the benefits they receive. The model requires the creation of new intermediaries and architectures. It defines personal data as a commodity that should be governed by data users in exchange for better services.

Source: Lopez Solano et al. (2022^[13]), *Governing data and artificial intelligence for all*,

Regulation

A people-centred justice system operates within an environment of cross-cutting and sectoral regulation. The regulatory entities are a mix of state bodies and non-state bodies (e.g. data protection regulators and professional associations for lawyers).

One of the roles of the leadership function is to ensure that these regulatory entities have the capability, capacity and lines of accountability to help deliver on the goals of the justice data framework. As such, both the regulatory entities and their regulatory frameworks must be easily understandable and accessible to justice stakeholders.

However, this regulatory landscape is constantly evolving. New cross-cutting regulation is emerging around data and AI, which may have a future impact on justice data governance. Likewise, regulatory gaps remain around issues like algorithmic accountability (ALI, 2021^[54]) and AI harms (AWO, 2023^[55]), while

new types of systems – such as large language models (LLMs) – are emerging and are likely to require ongoing changes to legal and regulatory frameworks.

Cross-cutting regulation

The primary cross-cutting regulatory focus of data governance is usually seen as data protection, but a range of other cross-cutting regulations also apply to data-related activities. Data protection legislation creates data protection authorities (DPAs) that are mandated to enforce legislation in their jurisdiction. These DPAs also have regulatory authority over the justice sector.

Data protection law has a long history, starting with the OECD Guidelines on the Protection of Privacy and Transborder Flows of Personal Data in 1980, followed by the Council of Europe's Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data (CETS No. 108) in 1981. Data protection legislation was originally designed to protect the privacy of individual citizens against the state.

The focus has latest shifted towards providing individual rights for the protection of personal data, while promoting the free flow of personal data for economic and state purposes (Edwards, 2019^[56]). More recent examples of data protection legislation include the EU General Data Protection Regulation (GDPR) adopted in 2016. In many data protection legal frameworks, justice data are considered highly sensitive for individuals (e.g. Article 10 of GDPR on the processing of personal data relating to criminal convictions and offences). Research conducted as part of a public deliberation exercise suggests that people consider information in court records to be as sensitive as the information held in medical records (see Box 4). If the data have been published under the requirement of anonymisation, it might be important to consider regulation that can protect individuals from associated risks, such as re-identification.

Alongside data protection, other forms of cross-cutting regulation also apply to data-related activities and the organisations that perform them. This includes human rights, anti-discrimination and equality regulations, and health and safety, labour rights and administrative law. It may also include professional standards (e.g. attorney client privilege).

More recently, governments are creating new cross-cutting regulations focused on parts of the economy and society that have been created or grown in scale and/or importance. These new regulations may affect certain activities within a people-centred justice system (see Box 18).

Box 18. EU cross-cutting regulation

The EU has the most comprehensive set of regulations on data governance, either proposed or already coming into force. The European Commission is the organisation regulating these matters, rather than new or existing national regulators.

The EU has recently passed a Digital Markets Act (DMA), to create a more level playing field in new digital markets such as social media, and a Digital Services Act (DSA), to create a safer online space for individuals. Similar efforts are underway in countries such as Canada, India and the United Kingdom.

In the past year, the EU has also approved a new Data Act and Data Governance Act (DGA) that complement the GDPR to create a framework for data sharing in multiple sectors. The DGA supports the creation of novel data intermediaries that may be used in people-centred justice systems. While the EU also intends to create a number of Data Spaces for particular sectors, it is worth noting that the initial list does not include the justice sector.

Another piece of EU legislation is the AI Act. This Act categorises uses of AI into: (1) unacceptable; (2) high-risk; or (3) a low/minimal risk to the health and safety or fundamental rights of natural persons. Regulatory safeguards are provided for each category. The high-risk category includes various systems related to justice (i.e. AI systems intended to assist a judicial authority in researching and interpreting facts and the law and in applying the law to a concrete set of facts). Article 10.2 creates data governance and management practices appropriate for high-risk AI in justice systems. Moreover, Article 10.3 requires training, validation and testing datasets for high-risk AI systems to be relevant, representative, free of errors and complete.

Source: European Union (2022^[57]), *European Data Governance Act*, Data Spaces (2022^[58]), *Real-time linked data spaces*, *Common European data spaces*, European Union (2021^[59]), *Proposal for a Regulation Of The European Parliament And Of The Council Laying Down Harmonised Rules On Artificial Intelligence (Artificial Intelligence Act) And Amending Certain Union Legislative Acts*.

Sectoral regulation

As with many parts of society and the economy, there are pre-existing sectoral regulations and regulators within the justice sector. The duties, responsibilities, powers and tools of many regulators in other sectors have been updated for reasons including: the changes brought about by the digital transformation; the opportunities of digitalisation for new services; and the risks that digital transformation and increased use of data entails for both users and broader society. These risks might emerge through the interactions between people and new services, or changes to how existing services are delivered through the use of data driven approaches (Diver and McBride, 2022^[60]).

A tension between supporting innovation and preventing new harms can often surface in debates about sectoral regulation. For example, precautionary behaviour based on potential harms has been underlined as unnecessarily reducing innovation. To help navigate these tensions, new approaches to regulation are being developed and proposed (e.g. anticipatory regulation), though their effectiveness in practice has not been evaluated (Nesta, 2019^[61]). In this regard, it is important that countries view these tensions as a way of simultaneously tackling harms and supporting opportunities. The objectives and values for data governance in a people-centred justice system should closely guide this work.

It is not yet clear what future sectoral regulation may be required for the use of data within justice systems by Legaltech services. However, any data governance framework adopted for justice data should include robust monitoring and evaluation frameworks and implement controls and safeguards around data use. Justice sector leadership should be validating that relevant sectoral regulators have these capabilities. This must include robust lines of accountability, accessible mechanisms for redress in the case of harm, and

could include accreditation of products and services to demonstrate that they meet national standards (AWO, 2023^[55]).

At present, very few sectors have well-established practices to seize the opportunities of the digital age. Due to the limited number of established practices for seizing sectoral opportunities, people-centred justice systems may need to debate, test and implement new practices. This should be accompanied by capacity building efforts among justice regulators to develop and enforce these practices.

Typically, finance and healthcare are seen as successful in seizing sectoral opportunities. For instance, open banking initiatives indicate one way to support the design of new policies and services that meet people's needs (see Box 19).

Box 19. United Kingdom: Open banking sectoral regulatory intervention

In the finance sector, many countries have updated their regulation to support competition, innovation and the growth of FinTech services through data governance initiatives called “open banking”. While practices differ across countries, the data protection concept of data portability and interoperability of payments services is generally a common element. The United Kingdom was the first country to use this model.

In 2016, the Competition and Markets Authority (CMA), the United Kingdom's competition regulator, investigated the retail banking sector and concluded that there was a lack of competition and innovation. To remedy this shortcoming, it decided to create and implement an open banking standard to support trustworthy data sharing.

The purpose of open banking is to allow customers to securely share data with trusted third parties so that a broad range of businesses can compete to provide customers with better financial services, more choice and lower prices. It builds on, and goes beyond, the data protection concept of data portability within the specific context of retail finance. Open banking uses secure, open APIs (“Application Programming Interface”) to share customer account data and make payments with trusted third parties. The APIs were developed as an open standard with a range of stakeholders involved in creating them. The UK's nine largest banks were required to implement the APIs, but other financial service providers can decide whether to implement them.

Access to the APIs is governed by the Financial Conduct Authority (FCA) with authorised parties allowed to use them in accordance with the processes and user experience described in the standard. This model was agreed with the UK's data protection authority, the ICO. This helps create trust in the system by providing both an authorisation process for new market entrants and a point of regulatory accountability.

The FCA created an Open Banking Implementation Entity (OBIE) to manage the process of creating the standard and to support banks and third parties to implement it. Funding for the entity is collected by the regulator and provided by industry. The government of the United Kingdom and regulators are currently assessing the future governance and vision for open banking.

Source: CMA (2016^[62]), *Retail banking market investigation: overview*; ODI (2020^[63]), *Monitoring Equality in Public Services*; Baker (2022^[64]), *Open Banking lessons learned review*; FCA (2022^[65]), *The future of Open Banking and the Joint Regulatory Oversight Committee*.

Delivery layer

The delivery layer encompasses the processes, mechanisms and tools facilitating the practical implementation of data governance at a granular level (OECD, 2019^[40]).

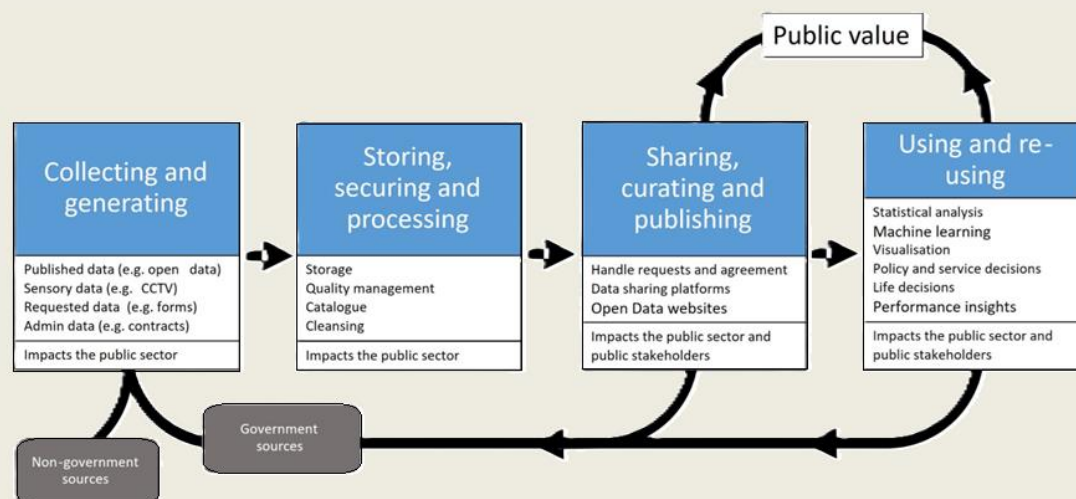
Data value chain

The data value chain can be understood as a sequence of activities through which data are collected, processed, analysed, and used to generate value (van Ooijen, Ubaldi and Welby, 2019^[41]). This value can be economic, social or organisational.

The data value chain is a cyclical process. The model presented in Box 20 helps trace the journey from handling raw, isolated and unstructured datasets, to recognising and understanding relationships within the data, and then transforming them into information and knowledge. This knowledge serves as a foundation to make strategic, tactical or operational decisions and take action.

Acknowledging the diversity of stakeholders in a people-centred justice system, both within and outside the public sector, the justice data value chain is similarly composed of multiple organisations collecting, storing, sharing and using data. Given the global and segmented nature of digital and data markets, some of these organisations are likely to exist in different legal jurisdictions. The data value chain operates across this federated system. Strong strategic and tactical layers in the data value chain reinforce the delivery layer, contributing to attaining the desired objectives and values of a people-centred justice system (see Achieving the objectives in practice and Upholding the values of the people-centred justice framework in Chapter 2).

Box 20. The government data value cycle



Generating and collecting: This is the starting point for the application of data. All data within a people-centred justice system are generated by human or natural activity and captured by a person or organisation. This may encompass activities such as progressing court cases, administering surveys, providing legal advisory services, or capturing images on a police surveillance camera. It also might include organisations such as courts, law enforcement authorities, or survey firms. In the collection stage of the data value chain, data are transmitted to some form of storage and validated to understand its usage for specific purposes. At this stage of the data value chain, organisations are typically less visible within the justice system (e.g. cloud storage providers, research repositories).

Storing, securing and processing: Once data have been identified, collected and generated, they must then be stored, secured and processed. This phase of the process may have a significant impact on public trust. Once data have been collected, decisions need to be taken regarding their storage, assessment of quality (including any issues of bias), cataloguing and cleansing. These steps are

essential not only in ensuring trust in the capacity of the public sector to handle data properly, but also in providing a solid foundation for the subsequent phases of the cycle.

Sharing, curating and publishing: The third phase of the data value cycle considers the way in which data that have been stored, secured and processed are shared, curated and published. Legislation and infrastructure may have a significant impact on the ease of accessing data.

Using and re-using: The final phase concerns making use of shared and/or published data. The potential use of data can be diverse, including to inform the analysis, design and delivery of policies and services, machine learning, visualisation, and performance insights.

Source: van Ooijen, Ubaldi and Welby (2019^[41]), *A data-driven public sector: Enabling the strategic use of data for productive, inclusive and trustworthy governance*.

Generating and collecting

Data held or used within a people-centred justice system is generated by human or natural activity and captured by some entity (see Table 1), meaning that there is no such thing as raw data (Gitelman L., 2013^[66]). As the starting point for the application of data within government, it is important to recognise that the data accessed by public servants can take many forms and come from multiple sources. A person or organisation capturing data may have had particular purposes or processes that, intentionally or not, affect how the data are recorded, what it is useful for, and what impact the act of generation and capture may have had on people and communities. As such, it is fundamental to consider the data source to ensure that the data are suitable for use, but also that they have been captured in a way that meets the desired objectives and values of a people-centred justice system. For example, data that have been captured illegally should never be used in any justice system. However, data may be sourced from an exchange that is produced by another data value chain. Likewise, data from an exchange may be purchased as a dataset, provided as part of an analytics service, or made freely available.

While the sources for these data might be within the people-centred justice system, sources can also exist within non-justice sectors which may require more critical examination. For example, some sources of statistical justice data may be designed to meet the needs of government decision makers rather than non-state actors. Similarly, some sources of data about individuals may not have an appropriate form of consent or social license to be used (see Box 4 and Box 5).

In relation to justice data on individuals, consent should be conceived through the individual lens provided by data protection law (i.e. where consent is typically only one acceptable legal basis) but also as the act of ensuring an acceptable basis for data capture. This acceptable basis can include both individual permission/consent and the types of societal or community consent that may be provided through a formal democratic and legal process or a participatory method (Ridpath J., 2022^[67]). The basis should be both legally and ethically acceptable to the impacted individuals or communities.

Storing, securing and processing

Once data are identified, collected and generated, data are then transmitted to some form of storage and validated to understand what it is useful for. The act of storage may involve multiple organisations. This is particularly the case as processing moves into the domain of the private sector, with cloud service providers often using a mix of open and proprietary software.

At an early point in the government data value cycle, it is important to focus on producing good quality data to support its re-use. Data quality assessments, and potentially cleansing activity, form part of validation for data re-use. While good quality data is optimal, it is also important to recognise that quality can mean different things to different data users. For instance, a longitudinal research project can use statistical techniques to handle uncertainty in data, while an arbitration service provider needs a high level of confidence in the identity of the individuals that it is serving.

Documenting, understanding and communicating quality to data users is an important first step to preserve trust in the management of data and organisations that hold them. A number of approaches to understanding and communicating data quality and other information about datasets are being adopted in different parts of the data ecosystem. Some examples are datasheets for datasets, within the AI/ML community and data quality dimensions within the United Kingdom (Gebru et al., 2018^[68]) (UK DQH, 2021^[69]). In addition to these approaches, security infrastructure needs to be treated as a high priority topic (see Manage the opportunities and issues created by digital transformation in Chapter 1; and Box 10).

Sharing, curating and publishing

At this stage – when data are being shared, curated and published – the potential impacts of using data are no longer limited internally to the public sector. Instead, they begin to reach those external to government who can begin to use shared data.

Legislation and infrastructure can affect how easily requests for access and data sharing agreements are managed for data that are not publicly available. When there are explicit efforts to support data sharing, curating and publication, the public sector should focus on the early stages of the cycle in prioritising interoperability platforms and licensing, ensuring high data quality (OECD, 2019^[40]).

Using and re-using

The final step in the data value chain is the use and re-use of data. This step includes both packaging the data into something useable by an end user and the act of trading the insights (GSMA, 2018^[70]). Data might be packaged into a report alongside other insights and analysis, presented as data visualisation, or used to deliver another service (e.g. legal advice). The packaging may allow users to further process and analyse the data themselves.

The packaging process is increasingly likely to allow the end user to scrutinise the chain of events that led to the insight. This process contributes to promote transparency as it allows the end user to scrutinise the chain of events that led to the insight. Ultimately, this also contributes to trust in data use and re-use. The packaging process might require transparency about how the data were captured, information about the quality of the data, and an explanation of how the analysis was performed. The level of scrutiny may vary according to legal requirements and different users' needs.

The trading takes place through several mechanisms. If a data value chain produces a data output (e.g. market insights about demand for particular types of legal services), the outputs might be published in the public domain or made available for a fee on a data marketplace. If a data value chain produces more transactional or advisory services, then the data outputs may be made available at commercial advice centres or through tribunals and courts.

Data infrastructure

Data infrastructure includes:

- **Registers** - authoritative lists that people can trust;
- **Catalogues and discoverability** - ways for users to find data;
- **Platforms** - shared APIs, research repositories, and identity systems; and
- **Data services** - providing data as an ongoing service to users.

Each of these elements could be applied as digital public infrastructure – sometimes called a digital public good (Lopez Solano et al., 2022^[13]; DPGA, 2022^[71]) – as well as a range of other business models.

In line with trends in other sectors, digital public infrastructure is likely to expand overtime to encompass more elements. This provides a sustainable baseline for services and research, while encouraging and supporting innovation in more emergent and novel spaces. As data infrastructure evolves and expands,

business model decisions should be made within the overall context of national justice systems and uphold the objectives and values of people-centred justice (see Objectives and values of data governance for people-centred justice in Chapter 2).

Registers

Registers are authoritative lists that people can trust (Downey, 2015^[72]). They make it easier for people and organisations to use data by providing strong, foundational building blocks from which to build services or perform analysis.

Within a people-centred justice system, registers might include:

- Criminal court locations;
- Registered justice service providers;
- Lists of registered professionals (e.g. judges, solicitors, mediators);
- A list of justice cases; or
- A list of algorithms used in the justice system.

For centuries, registers have been administered by institutions such as professional membership bodies (see Box 21), mapping agencies, and registrars of companies or regulated service providers. These institutions have become trusted through a combination of longevity, the quality of the services they provide, and the governance mechanisms that have been built around them, such as statutory duties around accountability.

In more recent decades, many of these existing institutions have digitised the data in the lists they steward, using architectural practices such as standards and APIs. This has required an update of associated statutory duties around digital publishing and new use cases. These could include an expectation to provide a list of algorithms used to ensure transparency.

A people-centred justice system similarly creates the need for new registers and accompanying institutions. Debate and experimentation are required to arrive at decisions on the level of access of datasets, such as records from alternative dispute resolution pathways.

Box 21. Poland: The national register of mediators

The National Register of Mediators is part of the project "Dissemination of alternative dispute resolution methods by increasing the competences of mediators, establishing the National Register of Mediators and information activities", implemented by the Polish Ministry of Justice and financed by the European Social Fund. The National Register of Mediators serves as a public register that is transparent and available to everyone. It contains information on mediators conducting in-court and out-of-court mediations. The Register has an online functionality that allows all users to search for an appropriate mediator via its website. The Register also includes a catalogue of mediator names, specialisations and categories of cases for mediation.

The system also serves as a referral tool for both common court judges and mediators, enhancing collaboration and a seamless pathway between litigation and mediation services. The planned functionalities of the system enable court cases to be referred to mediation through the system and allow the circulation of documents such as case files, mediation protocols and draft mediation settlements.

Source: Government of Poland (2024^[73]), *National register of mediators*.

Discoverability

Discoverability is a long-standing need within any form of digital governance. While data might be made available, it must also be discoverable so that people can use it. Discoverability is therefore an important consideration when designing and delivering efficient and people-centred justice services.

Discoverability has evolved alongside digital tools from early portals and search engines, to more sophisticated tools such as recommendation algorithms. Within the field of data governance, tools are being developed for people who experience justice issues and cases, researchers who analyse them, and public and private sector innovators who create justice services. The creation of these tools is enabled by standardised metadata that describe datasets, who can use them and what they are useful for. For instance, a data catalogue can be a fundamental tool for ensuring discoverability and clarity of data and related services. In addition, standards to underpin these tools are emerging, such as the European Case Law Identifier (ECLI).

Platforms

The term “platform” is used in the generic sense in this section to refer to any shared API, shared component, identity system (Pope, 2019^[74]) or shared research data repository which are used to access data. Platforms might include:

- APIs that exchange bulk open data between organisations, that exchange personal data between trusted organizations with the consent of a data subject, or that provide a single verified credential about an individual (W3C, 2022^[75]).
- Shared components might include data storage systems, data visualisation tools, data sharing platforms or performance dashboards that show the performance of multiple organisations and services within a system.
- Identity platforms are often the most challenging and riskiest to build and govern. Verifying someone’s identity is essential to providing many rights and services, but identity is also one of the most sensitive attributes of individuals and can be one of the hardest to prove at a distance through a digital service.
- Shared research repositories bring together data from various sources and make it available for research, analysis or product/service development (SAIL, 2023^[76]) (ONS, 2023^[77]). Some research repositories are moving to more federated models, rather than a single platform.

Platforms help to deliver the data value chain and can form part of the infrastructure that supports a people-centred justice system. A growing number of governments are using platform strategies to deliver on digital government goals and to help deliver public sector digital justice services, such as submitting a case to a tribunal or applying for a court order. This can increase the efficiency and scale of data, and support broader efforts to make public services more accessible and inclusive. A growing number of governments are using platform strategies to deliver on digital government goals for these reasons.

In a digital context, platforms are best developed based on some indication of user and organisational needs. Yet, they need to be further adopted to be truly useful as platforms rather than as a point solution for a single use case or organisation. A platform might be shared by multiple business units within a single organisation or by multiple organisations. It needs to find a business model and funding that supports its usage and ensures that the platform remains operational and useful.

Widely shared and used platforms hold significant power to influence and shape how data are, and can, be used. To this end, it is particularly important that their governance (e.g. decisions about who can use them or what features they support) is aligned with the objectives and values of people-centred justice.

Data about the performance of platforms should be publicly available. This helps users decide which platform to use and support accountability. The performance data should be verifiable and auditable and

should provide an appropriate breakdown of performance for different users and justice use cases. The performance breakdown should allow civil society to verify that the platform conforms with relevant legislation (e.g. anti-discrimination, justice sector-specific). The impact of platforms should be independently evaluated on a regular basis to validate that their use remains consistent with the desired outcomes of people-centred justice.

Given the importance of public trust in a people-centred justice system, it is essential to find an approach to identity that suits the local context. A range of business models for platforms exist, including:

- Free platforms, funded by the state and provided as public infrastructure (e.g. a national identity system, or a platform for applying for a court order);
- Free to self-host, the software for the platform is available for free as open-source code, but users need to pay the operational costs for hosting and supporting it;
- Pay-per-use, users pay a fee based on units of usage. For example, a data processing API which charges € 0.01/1000 uses above a certain free level;
- Pay-per-commercial use, users pay a fee based on usage for commercial, revenue-generating purposes. For example, a data processing API which charges € 0.02/1000 uses above a certain free level to for-profit justice service but offers the same service for free to not-for-profit justice services; or
- Pay-for access, where users pay a recurring fee for access to the platform.

Data services

The provision of data (e.g. official statistics, performance or transparency data) is increasingly designed in the same way as digital services. Approaches such as user-centred design (UCD) and the use of multidisciplinary teams are widely applied in service design and applied when data are seen as a service (e.g. open data portals, APIs, data marketplaces data analytics services). Thinking of data as a service also brings a recognition that the provision of data is often an ongoing, iterative task rather than a one-off activity.

However, this approach also presents several risks. As UCD methodologies have been developed in large commercial organisations, they can lead to an excessive focus on individual service users at the expense of the broader network of stakeholders (Mani-Kandt et al, 2021^[78]). As many of the impacts and risks of data are borne by non-data users, this means that UCD approaches need to be combined with a broad definition of users, coupled with systems thinking and participatory approaches that look for and mitigate potential adverse consequences (Jones, 2014^[79]; Tonkinwise C; Degl'Innocenti F, 2021^[80]; Design Council, 2022^[81]). Supporting data practitioners to develop communities of practice, playbooks and guides for how to build data services responsibly in a way aligned with people-centred justice will help navigate these risks and bring desired benefits.

Data architecture

Within data architecture, this working paper considers standards and interoperability.

Standards make it easier for organisations to publish, access, share and use quality data. They can be used to provide a consistent definition of what counts as a completed court case, or how to describe the demographics of a witness. Standards need to be developed in an inclusive way that supports desired outcomes and leads to their adoption. Institutions can have an important role in supporting the development of standards in a collaborative and inclusive way.

Interoperability is based on standards. It refers, for example, to sharing information on a court case between two trustworthy legal service providers. Interoperability supports data analysis and research, and enables justice system users to move between or change service providers. In other sectors, regulators

are mandating service interoperability to increase competition between private sector service providers in digital markets.

Standards

Standards can be described as reusable agreements that make it easier for people and organisations to publish, access, share and use better quality data (Open Data Institute, 2018^[82]).

Technical standards have long been recognised as useful mechanisms to make tasks repeatable by many people, to create outputs that can be shared between many organisations, and to make it easier for organisations to switch between standardised components (e.g. data models, APIs, security mechanisms). Technical standards can support and embody goals such as competition, interoperability, equality and safety. Standards for data are no different.

In recognition of their benefits, the OECD OURdata Index measures adoption and use of standards as part of government efforts to ensure the availability, accessibility and re-usability of government data (OECD, 2019^[40]). The Global Data Barometer, an initiative of Open Data for Development and ILDA, also measures adoption and use of technical standards as one of its indicators for good data governance (Global Data Barometer, 2022^[83]).

Within a people-centred justice system, a standard might describe a number of different types of data and processes. For example:

- The location and accessibility of court buildings;
- How a case is defined and what makes it complete;
- Mechanisms for exchanging case data between justice professionals or service providers;
- Design patterns for collecting demographic information about justice system users;
- How to report performance data to regulators;
- A framework for measuring justice outcomes;
- A framework for measuring justice experiences (Armstrong et al., 2020^[84]).

Some of these standards might be specific to the justice sector (e.g. types of cases, area of law, professions), while others might be used in multiple sectors (e.g. location of buildings or design patterns for collecting demographic information).

While standards have many benefits, they also come with risks. For example:

- Standards development processes may not be inclusive and support participation from all groups. This can lead to standards that do not support the needs of all actual and potential users of the justice system;
- Standards development processes can move too slowly to adapt to evolving technological possibilities, and human and societal needs;
- Standards documentation can be costly or be published under restrictive licenses, presenting unfair limitations on how it can be used;
- Mandatory standards may be difficult to adopt and impose compliance costs that unnecessarily reduce the objectives of the justice system being met;
- Unnecessary threats to commercial interests can lead to standards processes becoming highly contested, with associated legal costs and court cases;
- The task of turning human activity into a specified data format risks losing some of the nuanced human experiences.

These risks have led to standards processes becoming more formal, with a need to demonstrate that due process has been followed, and more open, to support greater participation and adaptability. In parallel with these trends, there is an increasing recognition that standards should not be seen as solely a technical

matter. Instead, they should be seen as part of broader policy development with a wide range of skills and voices involved in their development (OECD, 2019^[40]).

To manage these opportunities and risks, countries could carefully consider:

- Processes and institutions for standards development;
- Recommendations on standards adoption; and
- Support for standards adoption.

Existing national and global standards development organisations (SDOs) (e.g. the W3C, IEEE and ISO), can provide foundations for standards development. Justice sector experts would need to participate in the processes of standards development. Within particular jurisdictions, organisations may develop their own standards, but should follow good practices such as the OpenStand principles (IEEE, 2014^[85]). Within a people-centred justice system, funding may be needed to support participation in standards processes, particularly for organisations that represent people who may be most at risk of harm from increased data use or unfair justice outcomes.

It is also important for countries to consider standards adoption, including how and when organisations should be required to use a standard and what support might be provided. Organisations can be mandated or required to use a standard (i.e. where the standards are *de jure*) to operate in a particular section of the justice system where the standard is already being broadly applied (i.e. *de facto* standards). Decisions on mandating standards adoption are akin to a regulatory function and require implementation by institutions with a formal role, responsibility and process.

Decisions on standards adoption may be split across multiple institutions or left to the market. For example, a public sector organisation may determine mandatory standards for criminal court services. Additionally, a regulator may set mandatory standards for performance data. In some cases, a multi-stakeholder body, authorised by the regulator, may decide when a standard for transferring case data between service providers should become mandatory. Similarly, the market may adopt a *de facto* standard for describing justice services.

A support function to assist organisations to incorporate standards into their processes and systems is an important part of a data governance framework, yet is frequently overlooked. Mechanisms to accelerate the adoption of standards across a sector can support the attainment of overarching people-centred justice policy goals and can realise the potential benefits of the data standard. Support mechanisms can include standards catalogues and roadmaps to help people discover standards; guides; conversion tools; compliance validation tools; business cases; or access to funding and expertise.

Interoperability

Interoperability is a mechanism for computing systems to work together (Brown, 2021^[86]). It can include both data and service interoperability for the purposes of:

- Data analysis and research, for example to understand the efficacy of justice services for people with differing demographic characteristics;
- Supporting justice service providers' needs to communicate information with each other, for example by disclosing legally required case information; or
- Supporting people's needs to move between legal advisors, service providers or justice pathways, for example by allowing them to easily move their whole case file from a mediation centre to a court system.

Within a people-centred justice system, each of these purposes could involve both public and/or non-public justice service providers.

Interoperability can provide great benefits. For example, it can help combine datasets from multiple systems for research or make it easier for a litigant to change their legal advisor if the service they receive

is unsatisfactory. However, interoperability can also come with risks. For example, an insecure interoperability architecture could lead to data breaches that damage public trust, while a poorly designed interoperability architecture may unfairly benefit some justice service providers over others.

Interoperability between the public and private sectors and within the private sector is, in most cases, less advanced than other public sector initiatives. This is generally seen to result from a limited alignment of incentives between competing organisations. This misalignment is an issue to which people-centred justice systems need to pay particular attention. Interoperable Europe, an initiative led by the European Commission and adopted by the Council of the EU, aims to enhance collaboration and information exchange among member states in justice and home affairs. Box 22 provides more details on the key elements of this framework.

Box 22. The European Interoperability for Justice and Home Affairs

Interoperable Europe is an initiative of the European Commission to increase the interoperability between public services. In tandem, the Council of the EU has adopted the European Interoperability for Justice and Home Affairs.

The Council of the EU's framework aims at enhancing collaboration and information exchange among EU member states in matters related to justice. Its primary objective is to improve the efficiency, effectiveness and security of systems and processes used by law enforcement, judicial authorities, immigration and other agencies involved in ensuring security and justice across the EU. The framework includes regulations and programmes of work across EU member states to develop mechanisms such as the ability for authorised organisations to search using biometric and biographical information, to compare biometric information, and to compare and find identity information across multiple systems.

Key elements of this framework are:

- **Technical Solutions:** Developing technical standards and tools that facilitate the secure exchange of data among different systems while ensuring data protection and privacy.
- **Legal Framework:** Establishing common legal frameworks and standards to govern the exchange and use of information, ensuring compliance with data protection regulations such as the GDPR.
- **Information Exchange:** Enabling secure and timely exchange of information and data between national authorities and fostering collaboration and coordination in addressing cross-border crime, security threats, and immigration issues.
- **User Access:** Ensuring authorised and controlled access to relevant information for authorised users, while safeguarding sensitive data.

Source: EDPS (2018^[87]), European Union (2019^[88]), European Commission (2022^[89]).

4 Conclusion

This working paper explores the critical role of data governance in delivering people-centred justice. It provides a comprehensive examination of the values, objectives and practices necessary for effective data governance in justice systems. It takes as a starting point OECD policy tools, including the OECD Framework and Good Practice Principles for People-Centred Justice and the OECD Data Governance Framework, and sets the ground for future research on data governance in justice.

The exploration of data governance for people-centred justice outlined in this paper highlights the critical role that data can play in modernising justice systems. Drawing from comprehensive desk research, stakeholders' interviews, and the OECD's various frameworks and recommendations, the paper underscores the necessity for effective data governance to ensure justice systems are responsive to the needs of people.

Recognising the need for effective data governance and that delivering people-centred justice requires a cultural shift in the way justice services and systems are designed and delivered, new justice data governance frameworks are needed to support a transition to people-centred justice. In particular, policy makers should consider new frameworks that re-orientate data collection practices from recording data solely relevant to the agencies to data that helps understand the pathways, experiences and needs of the people who seek to navigate the justice system. New justice data governance frameworks should also consider constitutional/legal concerns on data collection, sharing and use, as well as opportunities and challenges associated with digital transformation.

To date, existing justice data governance frameworks tend to privilege the views, experience and perspectives of justice system actors and professional users in decisions about data collection, sharing and use. This working paper also encourages the adoption of a people-centred justice approach to data governance models to enable the justice system to meet people's legal and justice needs. In addition, this working paper encourages the adoption of governance mechanisms that support data sharing between actors within and beyond and agencies outside the formal justice system.

Effective justice data governance for people-centred justice should enable the collection, use, management and sharing of data in view of two major objectives: first, understanding people's needs and experiences with legal and justice services from their perspective; and second, developing and implementing policies and services that meet those needs and removing barriers to access as part of a holistic vision for a people-centred justice ecosystem.

This working paper introduces the application of the OECD model for data governance to the justice sector. It intends to support policy makers in designing new data governance models for people-centred justice. The model encompasses three layers – strategic, tactical and delivery –, mutually reinforcing to achieve a sound data governance. In particular, as part of their new models for data governance policy makers should consider:

- Strong leadership that embraces a clear vision of data driven justice;
- Capacity for coherent implementation, including inter-institutional coordination bodies grounded in adequate institutional networks, capacity-building initiatives, collaboration and knowledge sharing;
- Regulatory functions that have the capability, capacity and lines of accountability to help deliver on the goals of the justice data framework; and
- Processes, mechanisms and tools facilitating the practical implementation of data governance at a granular level.

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Glossary

Access to justice: Access to Justice refers to the ability of people, businesses and communities to prevent conflicts and obtain effective, fair, equitable and timely resolution of their legal and justice-related needs (OECD, 2023^[1]).

Accessible justice services: To be accessible legal and justice services must be designed to actively overcome the range of barriers and provide the assistance that people require, recognising that need and disadvantage is unevenly patterned (OECD, 2021^[2]).

Anonymisation (data): The process by which personal data (see 'Personal data') are permanently and completely removed from data. Once anonymised, data can no longer be associated with an individual, nor re-associated.

API: Application Programming Interface. A technical mechanism for computers to communicate with each other based on a standard.

Artificial Intelligence (system): Refers to a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments. AI systems are designed to operate with varying levels of autonomy (OECD, 2019^[90]).

Data: Refers to recorded information stored in structured or unstructured formats, including text, images, sound, and video. For this survey, data refers only to data in digital form (OECD, 2021^[10]).

Data governance: Data governance is the exercise of authority, control and shared decision making (planning, monitoring and enforcement) over the management of data assets either within one organisation or across different organisations that share an interest for common data assets (Ladley, 2012^[91]).

Data governance framework: A framework describing the realm of actors involved in governing data, from private to public and from law to practical arrangements to deal with particular uses and problems (Global Justice Project, 2022^[92]). Any data governance framework has outcomes it is trying to foster and values used in its decision making. Later this working paper describes those outcomes and values for this framework.

Data value chain: The range of activities needed to create a data product or service.

De-identification (data): A process by which personal data (see 'Personal data') are removed from data in order to protect privacy. De-identified data may not necessarily be anonymised data as personal data may be able to be re-associated with the data at a later time.

Digital technologies: Refer to information communication technologies, including the Internet, mobile technologies and devices, as well as data analytics used to improve the generation, collection, exchange, aggregation, combination, analysis, access, searchability and presentation of digital content, including for the development of services and apps (OECD, 2014^[93]).

Digital transformation: The transformation of organisations, services and processes through the use of digital technologies.

Effective justice systems: Effective justice systems and services support individuals to secure outcomes that reflect their substantive legal rights, and provide fair and just resolution to problems (OECD, 2021^[2]).

Equitable justice systems: Justice systems and services that implement policies and processes that promote equality and take steps to gather the demographic information needed to demonstrate their efficacy.

Interoperability: Interoperability is a mechanism for computing systems to work together (Brown, 2021^[86]). Interoperability can include data interoperability - the ability of organisations to share data, through the business processes they support, by means of the exchange of data between their computer systems - and service interoperability - the ability for service providers to exchange information and mutually use the information which has been exchanged, so that all elements of each service works with each other and with users in all the ways in which they are intended to function (European Commission, 2022^[94]).

Justice data: The data generated by interactions between the individual and the legal system. “Legal system” means both the laws, policies and regulations made by government and the network of agencies, courts and tribunals that exist to enforce and uphold them. A justice system based on people-centred justice will extend beyond state-provided court services to other dispute resolution pathways. The scope of data governance for a people-centred justice system needs to extend beyond justice data and data held by justice systems and services, to include other data that helps understand the scope, nature and impact of justice problems, data that are necessary to design and deliver justice systems and services, and the data that are needed to measure what works.

Justice pathways: Justice pathways refer to formal and informal pre-court and court mechanisms and services used by people and other stakeholders to prevent legal issues and/or seek their resolution (OECD, 2023^[1]).

Justice systems and services: this term includes courts, law enforcement agencies, law firms and advice agencies. These will be a mix of public, private and third sector actors.

Legal and justice needs: Legal and justice needs may include a problem with a legal or justice dimension in any sector or any party to the dispute, whether or not this is recognised by those involved, and to the subsequent demand to access (public) justice services and other dispute resolution mechanisms in order to obtain recognition of and remedy to such problem (OECD, 2023^[1]).

Legal and justice services: Legal and justice services refer to the spectrum of in-person, virtual or hybrid judicial and non-judicial services offering individuals and businesses 1) support in the form of legal information, advice, resources and representation, and 2) formal or informal mechanisms to resolve their dispute or address their legal needs, including alternative dispute resolution (ADR) mechanisms that enable out of court settlements and schemes that support prevention and de-escalation (OECD, 2023^[1]).

Open data: Open data arrangements refers to non-discriminatory data access and sharing arrangements, where data are machine readable and can be accessed and shared, free of charge, and used by anyone for any purpose subject, at most, to requirements that preserve integrity, provenance, attribution, and openness (OECD, 2021^[10]).

Platform: The term platform is used in the generic sense to refer to any shared API, shared component, trust and identity system, or register (Pope, 2019^[74]).

People-centred justice: A justice system that has as its purpose and design the goal of equally meeting the needs of all people by enabling their effective participation and engagement in the process (OECD, 2021^[2]).

People-centred justice data: People-centred justice data refers to data that are collected in line with data protection standards directly from people, businesses and communities, and which relates to the justice problems they face, the impact these problems have, the justice they want and need, their decisions about resolving their justice problems, their experiences with justice services and their ability to obtain a fair outcome (OECD, 2023^[1]).

Register: An authoritative list you can trust (Downey, 2015^[72]).

Standard: Reusable agreements that make it easier for people and organisations to publish, access, share and use better quality data (Open Data Institute, 2018^[82]).